

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xcv.]
1 GEO. 6.]



CHAPTER xcv.

An Act to constitute a joint board consisting of representatives of the county council of the administrative county of Buckingham and the rural district councils of Aylesbury Buckingham Wing and Winslow to vest in the said Board the water undertakings of certain of the constituent authorities to authorise the Board to execute works and to supply water and for other purposes. A.D. 1937.
[20th July 1937.]

WHEREAS the rural districts of Aylesbury Buckingham Wing and Winslow are situate in the administrative county of Buckingham and are respectively under the local management and control of the rural district council of Aylesbury the rural district council of Buckingham the rural district council of Wing and the rural district council of Winslow :

And whereas the said rural district councils are under the provisions of the Public Health Acts supplying water within certain parts of their respective districts :

And whereas the existing waterworks of the said rural district councils of Aylesbury Buckingham Wing and Winslow are inadequate for the existing and prospective needs of the inhabitants of their respective districts or so much thereof as is comprised within the limits of supply referred to in this Act :

And whereas it would be of public and local advantage if a joint board (hereinafter referred to as

A.D. 1937. — “ the Board ”) were constituted consisting of representatives of the county council of the said administrative county of Buckingham and of the four rural district councils above mentioned :

And whereas it is expedient to arrange for the transfer to the above Board of the existing waterworks and water undertakings of the said rural district councils of Aylesbury Buckingham Wing and Winslow and that the Board should be empowered to make and maintain the waterworks by this Act authorised and to supply water in accordance with the provisions of this Act :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows :—

	£
The purchase of lands and easements -	3,000
The construction of the works authorised by this Act and the payment of any sums payable to the county council in pursuance of the section of this Act of which the marginal note is “ Payments by Board to county council ” -	137,500
Water mains and other waterworks purposes -	241,500
Working capital -	2,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and books of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act have been deposited with the respective clerks of the county councils of the administrative counties of Buckingham and Bedford which plans sections and

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books of reference are in this Act respectively referred to as the deposited plans sections and books of reference : A.D. 1937. —

And whereas in relation to the promotion of the Bill for this Act the county council of the administrative county of Buckingham have complied with the requirements of Part XIII of the Local Government Act 1933 : 23 & 24 Geo. 5. c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Bucks Water Act 1937. Short title.

2. This Act is divided into Parts as follows :— Division of Act into Parts.

Part I.—Preliminary.

Part II.—Establishment constitution and proceedings of Board.

Part III.—Transfer of undertakings &c.

Part IV.—Works and lands.

Part V.—Supply of water.

Part VI.—Finance.

Part VII.—Miscellaneous.

3.—(1) The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with this Act (namely) :— Incorporation of Acts.

(a) The Lands Clauses Acts with the following exceptions and modification :—

(i) Sections 127 to 131 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act; 8 & 9 Vict. c. 18.

(ii) The bond required by section 85 of the Lands Clauses Consolidation Act 1845

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10 & 11 Vict.
c. 17.

shall be sufficient without the addition of the sureties mentioned in that section;

(b) The Waterworks Clauses Act 1847 except—

(i) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

(ii) Sections 75 to 82 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts;

26 & 27 Vict.
c. 93.

8 & 9 Vict.
c. 20.

(c) The Waterworks Clauses Act 1863;

(d) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in the construction of those provisions “the railway” shall mean the works authorised by this Act;

10 & 11 Vict.
c. 16.

(e) The clauses of the Commissioners Clauses Act 1847 with respect to the following matters (namely):—

The contracts to be entered into and the deeds to be executed by the commissioners (except section 57);

The liabilities of the commissioners and legal proceedings by or against the commissioners.

(2) (a) In the construction of the provisions of the Lands Clauses Acts the Waterworks Clauses Acts 1847 and 1863 the Railways Clauses Consolidation Act 1845 and the Commissioners Clauses Act 1847 incorporated with this Act the expressions “the promoters of the undertaking” “the undertakers” “the company” and “the commissioners” mean respectively the Board.

(b) In relation to the exercise of powers by the Board “the limits of the special Act” in the Waterworks Clauses Act 1847 means the limits of supply as defined in the next succeeding section of this Act.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

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PART I.

—cont.

Interpreta-
tion.

And in this Act unless the subject or context otherwise requires—

“The Board” means the Bucks Water Board;

“The clerk” and “the treasurer” mean respectively the clerk and the treasurer to the Board;

“The undertaking” means the whole of the undertaking for the time being of the Board;

“The county council” means the county council of the administrative county of Buckingham;

“The Aylesbury district” “the Buckingham district” “the Wing district” and “the Winslow district” mean respectively the rural district of Aylesbury the rural district of Buckingham the rural district of Wing and the rural district of Winslow;

“The Aylesbury Council” “the Buckingham Council” “the Wing Council” and “the Winslow Council” mean respectively the rural district council of Aylesbury the rural district council of Buckingham the rural district council of Wing and the rural district council of Winslow;

“The constituent authorities” means the county council the Aylesbury Council the Buckingham Council the Wing Council and the Winslow Council;

“Constituent authority” means one of those councils;

“The limits of supply” means the limits for the time being of the Board for the supply of water;

“The appointed day” means the first day of October nineteen hundred and thirty-seven;

“The existing undertakings” means the water undertakings of the constituent authorities which are referred to and described in the First Schedule to this Act and includes the waterworks mains pipes machinery lands

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PART I.
—cont.

buildings and other real and personal property assets and effects rights powers privileges and liabilities vested in or enjoyed by the constituent authorities respectively for or in relation to such water undertakings immediately before the appointed day or to which such constituent authorities are subject for or in relation to those undertakings but does not include any funds or money or securities for money of the constituent authorities respectively whether invested or in hand;

“The product of a penny rate” means the aggregate product of a penny rate in the Aylesbury District the Buckingham District the Wing District and the Winslow District calculated in accordance with Rule 3 of the Rating and Valuation Act (Product of Rates and Precepts) Rules 1929 as amended by the Rating and Valuation Act (Product of Rates and Precepts) Amendments Rules 1933 or any rule or rules amending those rules or made in substitution therefor;

“Financial year” means the period of twelve months commencing on the first day of April in any year and ending on the thirty-first day of March in the next following year;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any security of the Board;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any

38 & 39 Vict.
c. 83.

annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but shall not include the power to borrow for temporary purposes which is conferred by section 215 (1) (a) of the Act of 1933;

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“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

9 & 10
Geo. 5. c. 57.

“The Public Health Acts” means the Public Health Act 1875 and the Acts amending or extending that Act including the Public Health Act 1936;

38 & 39 Vict.
c. 55.

“The Act of 1933” means the Local Government Act 1933;

26 Geo. 5. &
1 Edw. 8.
c. 49.

“The transport undertakers” means each of the following:—

The Great Western Railway Company;

The Great Western and Great Central Railways Joint Committee;

The London and North Eastern Railway Company;

The London Midland and Scottish Railway Company;

The London Passenger Transport Board;
and

The Metropolitan and Great Central Joint Committee;

“The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“Revenues of the Board” includes the revenues of the Board from time to time arising from

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—cont.

the undertaking or from any land or other property for the time being of the Board and the money receivable by them from the constituent authorities and all rates and money which they are authorised to levy and collect under the powers of this Act;

41 & 42 Vict.
c. 76.

“Telegraphic line” has the same meaning as in the Telegraph Act 1878;

“The Minister” means the Minister of Health.

PART II.

ESTABLISHMENT CONSTITUTION AND PROCEEDINGS OF
BOARD.

Incorporation of
Board.

5.—(1) For the purposes of carrying this Act into execution there shall be a Board constituted and appointed as by this Act provided.

(2) The Board shall be a body corporate under the name and style of the “Bucks Water Board” with perpetual succession and a common seal and with power to acquire and hold lands (without any licence in mortmain) and with all other powers and privileges of a body corporate.

Constitution of
Board.

6. The constitution of the Board shall (subject to alteration by the Minister as hereinafter provided) be as follows :—

Eight members to be appointed by the county council;

Five members to be appointed by the Aylesbury Council;

Four members to be appointed by the Buckingham Council;

Four members to be appointed by the Wing Council;
and

Four members to be appointed by the Winslow Council.

Appointment of
members
of Board.

7.—(1) The first appointment of members of the Board by each constituent authority shall take place at a meeting of the constituent authority to be held before the first day of January nineteen hundred and thirty-eight or such later date as the Minister shall allow on

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the application of any of the constituent authorities and the members so appointed shall subject to the provisions of this Act continue in office for such period as the constituent authority by whom they are appointed shall determine but not beyond the thirtieth day of April nineteen hundred and forty-one.

(2) Each constituent authority shall from time to time appoint such members as may be necessary in order to bring the number of members appointed by them up to the number of members of the Board whom they are by this Act authorised to appoint to hold office for such period not being more than three years as they may determine.

(3) A vacating member shall subject to the provisions of this Act be eligible for re-appointment.

8. If any constituent authority fail to appoint first members of the Board it shall be competent for the other members of the Board to carry this Act into execution and if any constituent authority fail subsequently to appoint members or a member of the Board at the proper time for their appointment the then existing members or member of the Board representing such authority and qualified to be members or a member of the Board shall continue in office till their or his successors or successor are or is appointed.

9. A person shall not be qualified to be a member of the Board unless he is a member of the constituent authority by whom he is appointed.

10. A person who is a member of two or more constituent authorities shall not be qualified to represent more than one of them and if the same person shall be appointed a member of the Board by more than one constituent authority he shall within one month after the second appointment choose under which appointment he shall serve and the other appointment shall be deemed void.

11. If a member of the Board ceases to be a member of the constituent authority by whom he was appointed he shall cease to be a member of the Board Provided that for the purposes of this section a member of the Board shall not be deemed to have ceased by

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—cont.

Provisions
where
failure to
appoint
members.

Members of
Board to be
members of
constituent
authorities.

Member of
two or
more
authorities
to repre-
sent one
only.

Disqualifi-
cation of
members.

A.D. 1937. reason of retirement to be a member of such constituent
— authority if he has been re-elected a member thereof
PART II. not later than the day of his retirement.
—cont.

Disability
of members
for voting.

12.—(1) If a member of the Board has any pecuniary interest direct or indirect in any contract or proposed contract or other matter and is present at a meeting of the Board at which the contract or other matter is the subject of consideration he shall at the meeting as soon as practicable after the commencement thereof disclose the fact and shall not take part in the consideration or discussion of or vote on any question with respect to the contract or other matter:

Provided that this section shall not apply to an interest in a contract or other matter which a member may have as a ratepayer or as an inhabitant of the limits of supply or as an ordinary consumer of water or to an interest in any matter relating to the terms on which the right to participate in any service (including the supply of goods) is offered to the public.

(2) For the purposes of this section a person shall (subject as hereafter in this subsection provided) be treated as having indirectly a pecuniary interest in a contract or other matter if—

- (a) he or any nominee of his is a member of a company or other body with which the contract is made or is proposed to be made or which has a direct pecuniary interest in the other matter under consideration; or
- (b) he is a partner or is in the employment of a person with whom the contract is made or is proposed to be made or who has a direct pecuniary interest in the other matter under consideration:

Provided that—

- (i) this subsection shall not apply to membership of or employment under any public body;
- (ii) a member of a company or other body shall not by reason only of his membership be treated as being so interested if he has no beneficial interest in any shares or stock of that company or other body.

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(3) In the case of married persons living together the interest of one spouse shall if known to the other be deemed for the purposes of this section to be also an interest of that other spouse.

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—cont.

(4) A general notice given in writing to the clerk by a member of the Board to the effect that he or his spouse is a member or in the employment of a specified company or other body or that he or his spouse is a partner or in the employment of a specified person shall unless and until the notice is withdrawn be deemed to be a sufficient disclosure of his interest in any contract proposed contract or other matter relating to that company or other body or to that person which may be the subject of consideration after the date of the notice.

(5) The clerk shall record in a book to be kept for the purpose particulars of any disclosure made under subsection (1) of this section and of any notice given under subsection (4) thereof and the book shall be open at all reasonable hours to the inspection of any member of the Board.

(6) If any person fails to comply with the provisions of subsection (1) of this section he shall for each offence be liable to a fine not exceeding fifty pounds unless he proves that he did not know that a contract proposed contract or other matter in which he had a pecuniary interest was the subject of consideration at the meeting.

(7) A prosecution for an offence under this section shall not be instituted except by or on behalf of the Director of Public Prosecutions.

(8) The Minister may subject to such conditions as he may think fit to impose remove any disability imposed by this section in any case in which the number of members of the Board so disabled at any one time would be so great a proportion of the whole as to impede the transaction of business or in any other case in which it appears to the Minister that it is in the interests of the inhabitants of the limits of supply that the disability should be removed.

(9) The Board may by standing orders provide for the exclusion of a member of the Board from a meeting

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PART II.
—cont.

of the Board whilst any contract proposed contract or other matter in which he has such an interest as aforesaid is under consideration.

(10) The provisions of this section shall apply in respect of members of a committee or sub-committee of the Board as those provisions apply in respect of members of the Board with the substitution of references to meetings of the committee or sub-committee for references to meetings of the Board.

Certificate
of appoint-
ment of
members.

13. Whenever an appointment of a member of the Board has been made the clerk of the constituent authority by whom the appointment was made shall by writing under his hand certify the appointment to the Board and shall forthwith on the first appointment transmit the certificate to the respective clerks of the other constituent authorities and on every subsequent appointment to the clerk and every such certificate shall be conclusive evidence of such appointment.

Resigna-
tion of
members.

14. Any member of the Board may at any time resign his office as such member by notice in writing addressed to the clerk.

Removal of
members.

15. Any member of the Board may be removed at any time by resolution of the constituent authority by whom he was appointed.

Vacation of
office by
failure to
attend
meetings.

16. If a member of the Board fails throughout a period of six consecutive months to attend any meeting of the Board he shall if the Board so direct cease to be a member of the Board:

Provided that—

(a) attendance as a member at a meeting of any committee or sub-committee of the Board shall be deemed for the purposes of this section to be attendance at a meeting of the Board;

(b) a member of any branch of His Majesty's naval military or air forces when employed during war or any emergency on any naval military or air force service and a person whose employment in the service of His Majesty in connection with war or any

emergency is such as in the opinion of the Minister to entitle him to relief from disqualification on account of absence shall not cease to be a member of the Board by reason only of failure to attend meetings of the Board if the failure is due to that employment.

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PART II.
—cont.

17. Where any member becomes disqualified for holding office or vacates his office by absence or otherwise or is removed from office the Board shall forthwith declare the office to be vacant and shall notify the fact to the constituent authority by whom he was appointed in such manner as the Board think fit. Notice of vacancies.

18. On any vacancy happening in the membership of the Board owing to a member dying resigning or becoming disqualified or otherwise ceasing to be a member the constituent authority by whom he was appointed may at any time after the happening of such vacancy appoint another person to be a member of the Board in his place but unless the vacancy happens at the expiration of the term of office of the vacating member the person appointed in his place shall continue in office only so long as the person in whose place he is appointed would have been entitled to continue in office : Casual vacancies.

Provided that if the vacancy happens within three months before the date of the expiration of the term of office of the vacating member the vacancy shall for the purposes of the appointment of his successor be deemed to have happened at that date.

19.—(1) The Board shall hold their first meeting on such day and at such time and place as shall be appointed by the county council. Meetings of Board.

(2) The Board shall hold an annual meeting within fourteen days after the thirtieth day of June in every year.

(3) Subject as aforesaid the meetings of the Board subsequent to the first meeting (including their annual meetings) shall be held at such places on such days and at such times as the Board may from time to time appoint.

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PART II.

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Chairman
and vice-
chairman
of Board.

20.—(1) At their first meeting and subsequently at their annual meeting in each succeeding year the Board shall appoint one of their members as chairman and another as vice-chairman for the ensuing year :

Provided that if there be an equality of votes as to the appointment of chairman or vice-chairman it shall be decided by lot which of the members having an equal number of votes shall be appointed as chairman or vice-chairman (as the case may be).

(2) A chairman or vice-chairman may if otherwise qualified be re-appointed and shall continue in office until his successor is appointed unless he dies or resigns or becomes disqualified or ceases to be a member of the Board before the appointment of his successor.

(3) On a casual vacancy occurring in the office of chairman or vice-chairman by reason of death resignation disqualification absence or any other cause another member shall be appointed in his place to hold office ~~until the time when the person in whose place he is~~ appointed would have gone out of office in the ordinary course.

Special
meetings of
Board.

21. The chairman or any three or more members of the Board may at any time by notice in writing addressed and sent to the clerk require a special meeting of the Board to be convened and the clerk shall convene a meeting accordingly.

Convening
of meetings.

22. The meetings of the Board shall be convened by the clerk of the county council until the Board have appointed a clerk and afterwards by the clerk and every meeting shall be convened by circular delivered to each member of the Board or sent by post to or delivered at his residence or place of business two clear days at least before the day of the meeting.

Quorum of
meetings.

23. To constitute a meeting of the Board there must be present not less than seven of the members of the Board.

Proceed-
ings at
meetings.

24.—(1) At every meeting of the Board the chairman or in his absence the vice-chairman or in the absence of both chairman and vice-chairman some member of the Board chosen by the members present shall preside.

(2) Every question at a meeting of the Board shall be decided by a majority of the votes of the members present and voting on that question and in the case of an equality of votes on any question the person presiding at the meeting shall have a second or casting vote :

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PART II.
—cont.

Provided that if at any meeting neither the chairman nor vice-chairman shall be present and there be any equality of votes in choosing the member to preside at such meeting it shall be decided by lot which of the members having an equal number of votes shall so preside.

25.—(1) Minutes of the proceedings of every meeting shall be drawn up and fairly entered in a book kept for that purpose or printed and kept in the form of a book and the minutes shall be approved and when approved signed by the chairman or other member presiding at the next ensuing ordinary meeting.

Minutes of
meetings.

(2) A minute of the proceedings of the Board or of a committee of the Board certified by the clerk shall be received in evidence without further proof.

(3) ~~Until the contrary is proved every meeting~~ whereof a minute has been so made shall be deemed to have been duly convened and held and all the members at the meeting shall be deemed to have been duly qualified and where the proceedings are proceedings of a committee of the Board the committee shall be deemed to have been duly constituted and to have had power to deal with the matters referred to in the minutes.

(4) Copies of the minutes of the proceedings of every meeting of the Board shall after the meeting at which they are approved be sent by the clerk to the clerk of each constituent authority for the information of that authority.

26. Subject to the provisions of this Act the Board may make standing orders for the regulation of their proceedings and business and of the proceedings and business of committees of the Board and may vary or revoke the same.

Standing
orders of
Board.

27.—(1) The Board may appoint out of their own body such and so many committees either of a general or special nature consisting of such number of persons

Committees
of Board.

A.D. 1937. as they think fit for any purposes which in the opinion
— of the Board would be better regulated and managed
PART II. by means of committees and may delegate with or with-
—cont. out any restrictions or conditions as they may think
fit any of their powers or duties (except any power
of raising money or of issuing any precept for contri-
butions) to any committee of the Board so appointed
and may dissolve any such committee so appointed.

(2) The provisions of section 96 of the Act of 1933
with respect to proceedings of committees of a local
authority within the meaning of that Act shall apply to
committees of the Board as if they were committees
of a local authority.

Appoint-
ment of
officers.

28.—(1) The Board may from time to time appoint
and remunerate a clerk a treasurer a manager and an
engineer or any of such officers and such other officers
clerks and servants as they from time to time think
requisite and all officers clerks and servants so appointed
shall subject to the terms of any agreement that may
be made between the Board and any officer clerk or
servant be removable by the Board at their pleasure.

(2) No member of the Board or of any of the con-
stituent authorities shall be an officer of the Board
but the same person may be and continue an officer of
the Board and of a constituent authority.

Acts not
invalid-
ated.

29. No act or proceeding of the Board shall be
questioned on account of any vacancy in their body or
on account of any defect in the appointment of any
member of the Board.

Expenses of
attending
meetings.

30. The Board may defray any expenses neces-
sarily incurred by members of the Board or of any
committee thereof in attending meetings of the Board
or any committee of the Board or in travelling by
direction of the Board or of any such committee for
the purpose of carrying out any inspection necessary
for the discharge of the functions of the Board or such
committee.

Power to
alter
number of
members.

31. On the application of any of the constituent
authorities the Minister may at any time after giving
notice of the application to the other constituent
authorities and considering any objections or representa-
tions made by them by order alter the number and

proportion of members to be appointed by the constituent authorities and may by such order alter the total number of members of the Board and may make any provisions incidental to or consequential on such alteration.

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PART II.
—cont.

32. If at any time the boundaries of the districts of any of the constituent authorities are altered or the whole or any part or parts of any such district or districts is created or included in an urban district then and in every such case the Minister may by order to be published as he shall direct make such provision as to him seems fit for adapting the provisions of this Act to the alterations so made and to the incidents and consequences thereof and every such order shall notwithstanding anything contained in this Act to the contrary have effect as if the terms thereof were inserted in this Act but the Minister shall not make such an order until he has held a local inquiry on the subject of which notice has been given by advertisement or otherwise as the Minister may direct and an opportunity has been given to any person who appears to the Minister to be affected of stating any objections he may have thereto.

Provision
in event of
alteration
of districts.

PART III.

TRANSFER OF UNDERTAKINGS &C.

33. Subject to the provisions of this Act the existing undertakings shall on the appointed day by virtue of this Act become and shall thenceforth be transferred to and vested in the Board free from all charges debts and liabilities affecting the same and shall be carried on used exercised and enjoyed by the Board for the purposes and according to the provisions of this Act and (subject to those provisions) as the same would or might have been carried on used exercised and enjoyed by the respective constituent authorities in which the same were respectively vested immediately before the appointed day if this Act had not been passed :

Transfer of
existing
under-
takings.

Provided that the existing undertaking in the parish of Great Brickhill shall not be so transferred to and vested in the Board until the Board shall commence

A.D. 1937. to supply water in that parish in pursuance of the provisions of this Act :

PART III.

—cont.

Provided also that the existing undertaking for the supply of water in the parish of Wing shall not (otherwise than by agreement) be so transferred to and vested in the Board until the Board shall commence to supply water in that parish in pursuance of the provisions of this Act.

Provisions
as to
receipts and
outgoings.

34. The constituent authorities shall respectively be entitled to all rates rents profits and sums of money and shall discharge and pay all outgoings and liabilities in respect of the existing undertakings accruing due up to or which shall have accrued due or become payable prior to the appointed day and the Board shall be entitled to all rates rents profits and sums of money and shall discharge and pay all outgoings and liabilities in respect of the said undertakings accruing due as from or which shall accrue due or become payable on or after the appointed day and where necessary for the purposes of this section all revenues and outgoings shall be apportioned between the constituent authorities and the Board :

Provided that so much of any water rates meter rents deposits and other charges received by any of the constituent authorities before the appointed day as is in respect of any period subsequent to that day shall be paid to the Board and all rates rents profits and sums of money accruing prior to the appointed day in respect of the existing undertakings but not at that date actually due or payable shall when due be recoverable by the Board who shall pay to the constituent authorities respectively the proportion of all such rates rents profits and sums of money so recovered which shall be attributable to the period prior to the appointed day.

Transfer of
and com-
pensation
to officers.

35.—(1) Every officer and servant who immediately before the appointed day is in the whole-time employment of any of the constituent authorities solely in connection with the existing undertakings (in this Act called “transferred officer”) shall on the appointed day become an officer or servant of the Board and shall hold his office or situation by the same tenure and on

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the same conditions as immediately before the appointed day and while performing similar duties shall in respect thereof receive not less salary or remuneration than the salary or remuneration to which he would have been entitled if this Act had not been passed.

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PART III.

—cont.

(2) The Board may employ a transferred officer in the discharge of such of their functions as they may think proper and every such officer shall perform such duties in relation to those functions as may be directed by the Board.

(3) (a) Every officer and servant who at the date of the passing of this Act is in the employment of any of the constituent authorities and who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office by determination of his appointment (otherwise than for misconduct) or by diminution or loss of emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Board.

(b) The provisions of subsections (2) and (3) of section 150 of the Act of 1933 and the provisions of the Fourth Schedule to that Act shall apply as if this Act were an Order made under Part VI of that Act and the Board were a local authority.

(c) For the purposes of this subsection the expression "existing officer" in subsections (2) and (3) of the said section 150 and the expression "officer" in the said schedule shall be construed as meaning an officer or servant who at the date of the passing of this Act is in the employment of any of the constituent authorities and the expression "emoluments" has the same meaning as in the Act of 1933.

36. If on the appointed day any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of any of the constituent authorities in connection with the existing undertakings or in connection with the provision of new sources of supply or the extension of existing sources or the investigation of new sources or the acquisition of land which are respectively

Pending
actions &c.

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PART III.
—cont.

referred to in the section of this Act of which the marginal note is "Payments by Board to county council" the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the passing of this Act but the same may be continued prosecuted and enforced by against or in favour of the constituent authority as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not been passed.

Rates due
to con-
stituent
authorities.

37. All rates rents and charges in connection with the existing undertakings which have been lawfully made charged or imposed and which on the appointed day are due or if this Act had not been passed would have accrued due shall continue in force and be due and payable and may be collected recovered or enforced by the Board as they might have been collected recovered or enforced by the constituent authorities if this Act had not been passed.

Contracts
&c. to be
binding.

38. Subject to the provisions of this Act all agreements conveyances contracts deeds and other instruments entered into or made with or by the constituent authorities or by which they are bound in respect of any of the existing undertakings or the provision of new sources of supply or the extension of existing sources or the investigation of new sources or the acquisition of land which are respectively referred to in the section of this Act of which the marginal note is "Payments by Board to county council" or the acquisition of land for the purposes of this Act and in force on the appointed day shall on and after the appointed day be as binding and of as full force and effect in every respect against or in favour of the Board and may be enforced as fully and effectually as if instead of the constituent authority the Board had been a party thereto.

Books &c.
to remain
evidence.

39. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against any of the constituent authorities in connection with the existing undertakings shall on and after the appointed day be admitted in evidence in respect of the same or the like matter for or against the Board.

40.—(1) The Board shall as consideration for the transfer of the existing undertakings in every financial year as from the date upon which the said undertakings are respectively transferred to the Board pay to the respective constituent authorities in which the same were respectively vested immediately before the appointed day respectively a sum equivalent to the sums (if any) to be expended during that year by those authorities respectively in the payment of gross interest upon and for the repayment of money borrowed in respect of their respective water undertakings and the sums paid into a sinking fund for the repayment of such moneys :

A.D. 1937.
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PART III.
—cont.
Consideration for transfer of existing undertakings.

Provided that such sums shall unless otherwise agreed be paid by half-yearly payments.

(2) If any question shall arise as to the method of calculating for the purposes of this section the sums to be expended or paid by the constituent authorities the same shall be settled by arbitration.

41.—(1) The Board shall in consideration of the work done and the expenditure incurred or to be incurred by the county council before the appointed day in connection with the provision of new supplies of water within the limits of supply or the extension of existing supplies within those limits or the investigation of new sources of supply or the acquisition of land for the purposes of this Act or the construction of any works on the respective sites of Work No. 1 and Work No. 12 authorised by this Act pay to the county council on or as soon as reasonably practicable after the appointed day all sums reasonably expended by that Council for such purposes together with interest at the rate of three and a half per centum per annum upon those sums from the respective dates on which they were so expended to the appointed day.

Payments by Board to county council.

(2) If any difference shall arise between the Board and the county council as to the amount to be paid by the Board under subsection (1) of this section such difference shall be settled by arbitration.

(3) All money received by the county council under this section shall be carried by them to the credit of the county fund of the administrative county of Buckingham.

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PART IV.

WORKS AND LANDS.

Power to
take lands.

42. Subject to the provisions of this Act the Board may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited books of reference which they may require for the purposes of this Act.

Acquisition
of ease-
ments.

43.—(1) The Board may in lieu of acquiring any lands for the purposes of the works authorised by this Act acquire such easements and rights only in such lands as they may require for such purposes (including the making enlarging maintaining repairing inspecting cleansing managing using working and obtaining access to such works) and may give notice to treat in respect of such easements and rights describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Board have acquired easements or rights only under the provisions of this section the Board shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements or rights and any other restrictions imposed upon the owners and occupiers have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

As to
taking of
parts of
certain
properties.

44. And whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Board of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Board and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto therefore the following provisions shall have effect:—

(1) The owner of and other persons interested in any of the properties whereof the whole or part

is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Board or each or any of them are or is hereinafter included in the term "the owner" and the said properties are hereinafter referred to collectively as "the scheduled properties" and severally as a "scheduled property":

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PART IV.
—cont.

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner fails to notify in writing to the Board that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Board such portion only without the Board being obliged or compellable to purchase the whole the Board paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner by notice in writing to the Board alleges that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Board have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Board the portion so determined to be severable without the Board being obliged or compellable to purchase the whole the Board paying such sum for the portion taken by them including compensation for any damage sustained by the

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PART IV.

—cont.

owner by severance or otherwise as shall be awarded by the tribunal :

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Board may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Board in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xcv.]
1 GEO. 6.]

The provisions of this section shall be stated in every notice given thereunder to sell and convey any of the scheduled properties.

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PART IV.
—cont.

45.—(1) All private rights of way over any lands which the Board are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Board be extinguished if the Board shall by resolution so determine and give notice in writing of such their resolution to the owner of any right of way referred to therein.

Extinction
of private
rights of
way.

(2) Provided that the Board shall make full compensation to all persons interested in respect of any such rights extinguished under the provisions of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

46. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twentieth day of November nineteen hundred and thirty-six if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensa-
tion in case
of recently
acquired
interest.

47. The Board and their surveyors officers and workmen and any person duly authorised in writing under the hand of the clerk may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Power to
enter upon
property for
survey and
valuation.

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PART IV.
—*cont.*Persons
under dis-
ability may
grant ease-
ments &c.

48. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Period for
compulsory
purchase of
lands.

49. The powers of the Board for the compulsory purchase of lands for the purposes of this Act shall cease on the thirty-first day of December nineteen hundred and forty.

Power to
purchase
additional
lands by
agreement.

50.—(1) The Board in addition to any other lands acquired or held by them in pursuance of this Act may by agreement purchase take on lease acquire and hold for the purposes of the undertaking (including the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Board are empowered to take) any lands or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Board deem necessary for those purposes.

(2) Provided that the Board shall not create or permit the creation or continuance of any nuisance on any such lands nor (without the approval of the Minister) erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking but the restrictions of this section shall not apply in respect of lands leased or sold by the Board.

(3) The Board may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses catchpits and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Board are empowered

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xciv.]
1 GEO. 6.]

to take from being polluted and the Board may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

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PART IV.
—cont.

(4) The Board may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Board or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Board are for the time being authorised to take.

51. The Board on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of water
rights &c.
on sale.

52.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Board may retain and hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by or vested in them under this Act or any general or local Act for the time being in force with reference to the Board and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Retention
and dis-
posal of
lands.

Provided that the Board shall not without the consent of the Minister sell lease exchange or otherwise

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PART IV.
—cont.

dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained :

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Board in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section shall release the Board or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions payable in respect of or affecting the lands other than the restrictions imposed by sections 127 to 131 of the Lands Clauses Consolidation Act 1845 but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this section had not been passed.

Proceeds
of sale of
surplus
lands.

53. The Board may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Board shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

Dwelling-
houses for
employees
and offices.

54. The Board may purchase or take on lease dwelling-houses and other buildings for persons employed by them for the purposes of the undertaking and offices and other buildings for those purposes and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to the Board for the purposes of the undertaking and (subject

to the terms of the lease) upon any lands for the time being leased to the Board for those purposes. A.D. 1937.

PART IV.

—cont.

55. Subject to the provisions of this Act the Board may—

Power to maintain &c. water-works.

- (1) maintain repair renew alter enlarge improve and extend the waterworks transferred to them by or acquired by them under this Act;
- (2) take intercept and impound pump raise and use any water which can or may be intercepted by any of the said works or which the constituent authorities or any of them might have intercepted by any of the said works if this Act had not been passed;
- (3) erect lay down provide and maintain upon in over or under any lands vested in the Board or in or over which the Board shall have acquired easements for the purpose of additional and other works and apparatus for the purposes of the undertaking;
- (4) lay down provide and maintain additional and other aqueducts mains and pipes subject to the provisions of this Act and of the Acts incorporated therewith; and
- (5) sell and supply water in accordance with the provisions of this Act.

56. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and according to the levels shown upon the deposited plans and sections and upon the lands delineated on those plans and described in the deposited books of reference the following works in the counties of Buckingham and Bedford (namely):—

Power to make water-works.

Work No. 1 A pumping station (to be called “the Wendover pumping station”) with a well or wells boreholes adits and other works and conveniences connected therewith or ancillary thereto to be situate in the parish of Wendover in the Aylesbury district in part of the enclosure numbered 325 on the 1/2500 Ordnance map (edition of 1898) of that parish;

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PART IV.
—cont.

Work No. 2 A line or lines of pipes commencing at the Wendover pumping station and terminating in the parish of Ashendon in the Aylesbury district at the Ashendon reservoir (Work No. 3) hereinafter described;

Work No. 3 A service reservoir (to be called "the Ashendon reservoir") to be situate in the said parish of Ashendon in part of the enclosure numbered 81 on the 1/2500 Ordnance map (edition of 1920) of that parish;

Work No. 4 A line or lines of pipes commencing at the Ashendon reservoir and terminating in the parish of Brill in the Aylesbury district at the booster station (Work No. 5) hereinafter described;

Work No. 5 A booster station to be situate in the said parish of Brill in parts of the enclosures numbered 345 and 347 on the 1/2500 Ordnance map (edition of 1920) of that parish;

Work No. 6 A line or lines of pipes commencing in the said parish of Ashendon by a junction with Work No. 2 and terminating in the parish of Quainton in the Aylesbury district at the re-pumping station (Work No. 7) hereinafter described;

Work No. 7 A re-pumping station to be situate in the said parish of Quainton in part of the enclosure numbered 514 on the 1/2500 Ordnance map (edition of 1899) of that parish;

Work No. 8 A line or lines of pipes commencing at the re-pumping station (Work No. 7) hereinafter described and terminating in the said parish of Quainton at the Quainton reservoir (Work No. 9) hereinafter described;

Work No. 9 A reservoir (to be called "the Quainton reservoir") to be situate in the said parish of Quainton in part of the enclosure numbered 573 on the 1/2500 Ordnance map (edition of 1899) of that parish;

Work No. 10 A water tower (to be called "the Mursley water tower") to be situate in the parish of Mursley in the Winslow District in

enclosure numbered 135 on the 1/2500 Ordnance map sheets XIX.7 and 8 (edition of 1925) of that parish;

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PART IV.

—cont.

Work No. 11 A line or lines of pipes commencing at the Mursley water tower and terminating at the Battlesden pumping station (Work No. 12) hereinafter described;

Work No. 12 A pumping station (to be called "the Battlesden pumping station") with a well or wells boreholes adits and other works and conveniences connected therewith or ancillary thereto to be situate in the parish of Battlesden in the rural district of Ampthill in enclosure numbered 55 on the 1/2500 Ordnance map sheet XXVIII.4 (edition of 1926) of that parish.

57. The Board may upon any lands for the time being belonging to them—

Subsidiary and additional works.

(a) make and maintain all such cuts channels wells adits catchwaters pump-houses tunnels pipes conduits culverts drains sluices bye-washes shafts water-towers overflows waste-water channels gauges filter-beds reservoirs tanks banks walls bridges roads ways embankments piers approaches buildings telegraphic telephonic and other means of communication rails plates sleepers sidings stations depots platforms sheds cranes engines machinery and appliances as may be necessary or convenient for the purposes of the undertaking; and

(b) execute for the purposes of the undertaking or in connection therewith any of the works and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847;

but the Board shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands.

58.—(1) In this section—

(a) "the protected well" means the existing well on the Mayertorne Manor Estate belonging at the date of this Act to Isabel

For protection of Isabel Fry and others.

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PART IV.
—cont.

Fry of Church Farm Buckland in the county of Buckingham as such well exists at the said date;

(b) "the owner" means the said Isabel Fry her successors in title and assigns as owners of the protected well and includes her his or their lessees or tenants thereof.

(2) If at any time during the construction or after the completion of the pumping station Work No. 1 authorised by this Act it shall be proved by the owner that the protected well is used at the date of the passing of this Act as an effective source of supply and that the pumping by the Board at that pumping station has caused a diminution of the supply of water obtainable from the protected well the Board shall upon the written request of the owner (but subject to the provisions of this section) afford to the owner a supply of water equal to the amount of such diminution (as proved) at such cost or rate (if any) as that the total cost to the owner of obtaining her full supply shall not be more after than before the construction of the said pumping station and upon such other terms as may be agreed or failing agreement may be settled by arbitration and for the purpose of affording a supply of water under this section the Board may supply water beyond the limits of supply.

(3) Provided that—

(a) the Board shall not be under any obligation to give a supply of water for domestic purposes under this section if the water from the protected well is so polluted as to be or to be likely to be injurious or dangerous to health unless such pollution is proved to be caused by the Board;

(b) the Board shall not be liable in respect of any claim made by the owner under this section if the owner shall have failed to afford to the Board and their officers and servants at all reasonable times after the passing of this Act and free of cost access to the protected well and such information as the Board may reasonably require in regard to the cost to the owner of operating

the protected well and facilities for ascertaining particulars thereof and the level and quantity of the water therein;

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PART IV.

—cont.

- (c) the Board shall not be subject to the obligations of this section if prevented from supplying water thereunder in consequence of frost unusual drought or other unavoidable cause or accident.

(4) All mains pipes meters and fittings required for the purpose of supplying water to the owner in pursuance of this section shall be provided laid down and fixed and all such mains pipes and meters shall be maintained by and at the expense of the Board and the owner shall afford to the Board all reasonable or necessary facilities for those purposes but all such fittings which shall be placed or fixed upon the land or premises of the owner shall be repaired maintained and (when necessary) renewed and made good by the owner to the satisfaction of the Board.

(5) The Board may if they think fit in lieu of affording a supply of water equal to the diminution of the supply from the protected well deepen the protected well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the owner shall without making any charge therefor give the Board access and every facility for carrying out such deepening borings or headings.

(6) If the Board do not afford a supply equal to the diminution of the supply as aforesaid they shall make compensation in money to the owner for such diminution and they shall also make like compensation for any injury caused to the owner by the powers conferred by the last preceding subsection and the amount of such compensation shall be settled in case of difference by arbitration.

(7) Any question which may arise between the Board and the owner as to the quantity time place or manner of the supply to be afforded by the Board in pursuance of this section and any other question dispute or difference which may arise between the Board and the owner under the foregoing provisions of this section shall be determined by arbitration.

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PART IV.
—cont.

For pro-
tection of
Bletchley
Urban
District
Council.

(8) The Board and the owner may enter into and fulfil agreements with reference to the supply of water by the Board to the owner or with reference to any matter referred to in this section and may by any such agreement alter or modify any of the provisions of this section.

59. The following provisions for the protection and benefit of the Bletchley Urban District Council (in this section called “the Bletchley Council”) shall except so far as may be otherwise agreed in writing between the Board and the Bletchley Council apply and have effect (that is to say):—

(1) In this section “the Sandhouse well” means the existing well of the Bletchley Council at Sandhouse in the parish of Heath and Reach in the rural district of Luton:

(2) If at any time during the construction or after the completion of the Battlesden pumping station (Work No. 12) authorised by this Act it shall be proved by the Bletchley Council that the pumping by the Board at that pumping station has caused a diminution or cesser of the supply of water obtainable from the Sandhouse well the Board shall upon the written request of the Bletchley Council (but subject to the provisions of this section) afford to the Bletchley Council a supply of water equal to the amount of such diminution or to the supply which shall have ceased at such cost or rate (if any) as that the total cost to the Bletchley Council of obtaining their full supply shall not be more after than before the occurrence of such diminution or cesser and upon such other terms as may be agreed or failing agreement may be settled by arbitration as hereinafter provided and for the purpose of affording a supply of water under this section the Board may supply water beyond the limits of supply:

(3) The Board shall not be subject to the obligations of this section if prevented from supplying water thereunder in consequence of frost unusual drought or other unavoidable cause or accident:

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PART IV.
—cont.

- (4) For the purpose of affording a supply of water under subsection (2) of this section the Board may carry out all such works and do all such things as are necessary for that purpose :
- (5) The Bletchley Council shall grant to the Board without payment all such easements and facilities on lands vested in the Bletchley Council as may be necessary for or in connection with the execution of any works required to enable the Board to carry out their obligations to them under this section :
- (6) If it shall come to the knowledge of the Bletchley Council that the supply of water obtainable from the Sandhouse well is being diminished they shall forthwith give notice in writing to the Board of such diminution and if they shall fail to give such notice the Board shall not be liable to make any compensation to the Bletchley Council under this section :
- (7) The Board shall make compensation in money to the Bletchley Council (a) for any loss or damage sustained by the Bletchley Council by reason of such diminution or cesser of supply as aforesaid prior to the Board having afforded a supply under subsection (2) of this section and (b) in respect of any standing charges and other expenses incurred by the Bletchley Council during such time as the Sandhouse well is not fully utilised in consequence of a supply in bulk being afforded to the Bletchley Council under subsection (2) of this section and the amount of such compensation shall be settled in case of difference by arbitration :
- (8) (a) The Board shall before commencing to pump water at the Battlesden pumping station provide at that station and shall at all times thereafter maintain in an efficient state of repair a suitable meter for automatically measuring and recording the quantity of water pumped at that station and a suitable instrument for recording the level of water at that station and all water pumped at that

A.D. 1937.

PART IV.

—cont.

station shall pass through that meter The Battlesden pumping station and the meter and instrument thereat and the records thereof shall at all reasonable times be open to the inspection of the engineer to the Bletchley Council or any other officer or person duly authorised in writing by the Bletchley Council and such officers or person may take copies of the said records;

(b) The Bletchley Council shall within a reasonable time after the passing of this Act provide at the Sandhouse well and at all times thereafter maintain in an efficient state of repair a suitable meter for automatically measuring and recording the quantity of water pumped at that well and a suitable instrument for recording the level of water in that well and all water pumped at that well shall pass through that meter The Board shall repay to the Bletchley Council any expense reasonably incurred by them in providing and installing such apparatus as aforesaid The Sandhouse well and the pumping station connected therewith and any meter and instrument provided by the Bletchley Council pursuant to this paragraph and the records thereof shall at all reasonable times be open to the inspection of the officer or person duly authorised in writing by the Board and such officer or person may take copies of the said records :

- (9) Any question which may arise between the Board and the Bletchley Council as to the quantity time place or manner of the supply to be afforded by the Board in pursuance of this section and any other question dispute or difference which may arise between the Board and the Bletchley Council under the foregoing provisions of this section shall be referred to arbitration.

Power to
deviate.

60.—(1) In the construction of the works authorised by this Act the Board may deviate to any extent not exceeding the limits of deviation shown on the deposited plans (and where on any street or road no such limits

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xciv.]
1 GEO. 6.]

are shown the boundaries of such street or road as for the time being existing shall be deemed to be such limits) and they may also deviate from the levels shown on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards.

A.D. 1937.

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PART IV.
—cont.

(2) Provided that except for the purpose of crossing over a stream no part of the lines of pipes authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

61.—(1) The Board during and for the purpose of the execution of the works authorised by this Act may temporarily stop up and divert and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any house in the street from passing along and using the same.

Temporary
stoppage of
streets.

(2) The Board shall provide reasonable access for foot-passengers bona fide going to or from any such house.

(3) The Board shall not exercise the powers of this section so as to prevent reasonable access for foot passengers and vehicular traffic bona fide to or from any railway station depot garage or other premises belonging to the transport undertakers or any wharf or depot of a canal company.

(4) The powers of this section shall not be exercised in reference to a trunk road or a county road or county bridge without the consent of the Minister of Transport or the county council or the Bedford County Council (as the case may be) but such consent shall not be unreasonably withheld.

62. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any street or road of the lines of pipes authorised by this Act and of any telephone or telegraph posts wires conductors or apparatus which the Board may and which they are hereby authorised to construct lay down or erect for the purposes of the undertaking:

Application
of Water-
works
Clauses Act
1847.

A.D. 1937.

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PART IV.
—cont.

Provided that the Board shall not under the provisions of this section construct lay down erect or maintain any discharge pipes telephone or telegraph posts wires conductors or apparatus in through across or under any street or road belonging to or maintainable by any of the transport undertakers without the consent in writing of the transport undertakers concerned nor shall the Board in carrying out the works authorised by this section unreasonably obstruct or interfere with the access to any such street or road. Such consent shall not be unreasonably withheld and shall be deemed to have been given if the transport undertakers shall fail to signify their consent or dissent within twenty-one days after it shall have been applied for and any question as to whether or not any such consent has been unreasonably withheld shall be determined by arbitration.

For pro-
tection of
Postmaster-
General
and others.

32 & 33 Vict.
c. 73.

10 & 11
Geo. 5. c. 80.
26 Geo. 5. &
1 Edw. 8.
c. 44.

As to
interference
with works
of electricity
undertakers.
45 & 46 Vict.
c. 56.
62 & 63 Vict.
c. 19.

63. Any electrical works and any telephone or telegraph posts wires conductors or apparatus or other means of communication made laid down erected or maintained under the provisions of this Act shall not be used in contravention of the exclusive privileges conferred upon the Postmaster-General by the Telegraph Act 1869 and shall not be installed or worked in contravention of the provisions of the Wireless Telegraphy Acts 1904 to 1926 or any statutory re-enactment or modification thereof and shall be so constructed maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line or with such wireless communications as may be used by the Royal Air Force or by an aerodrome licensed pursuant to an Order under the Air Navigation Acts 1920 and 1936.

64. Nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1936 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section and of section 17 of the schedule to the Electric Lighting (Clauses) Act 1899.

65.—(1) If the works authorised by this Act and shown on the deposited plans and sections are not completed by the thirty-first day of October nineteen hundred and forty-four then subject to the provisions of subsection (2) of this section the powers granted by this Act for constructing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

A.D. 1937.

PART IV.

—cont.

Period for completion of water-works and enlargement of works.

(2) Provided that the Board may extend enlarge alter reconstruct renew or remove any of their works and plant and in the case of the lines of pipes authorised by this Act lay down additional lines of pipes as and when occasion may require.

66.—(1) For the purpose of constructing enlarging extending altering repairing cleansing or examining any of the waterworks of the Board the Board may cause the water in any such works to be discharged into any available stream or watercourse and for that purpose the Board may lay down and maintain in any street all necessary discharge pipes and apparatus and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets as incorporated with this Act shall with the necessary modifications apply thereto.

Discharge of water into streams.

(2) In the exercise of the powers conferred by this section the Board shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such powers the amount of compensation to be settled in default of agreement by arbitration.

(3) Any water discharged by the Board under the provisions of this section shall be as free as may be reasonably practicable from mud silt or offensive matter and from matter injurious to fish or spawn or spawning beds or food for fish.

(4) The Board shall not cause water to be discharged under the provisions of this section into any watercourse which is a channel forming part of a road repairable by the county council or the county council of the administrative county of Bedford in such a manner as to damage or injuriously affect such road or any approach or culvert so repairable.

A.D. 1937.

PART IV.
—cont.

(5) The powers of this section shall not be exercised so as to damage or injuriously to affect the railways or works of any of the transport undertakers or the canals or works of any canal company.

Power to
take
waters.

67. Subject to the provisions of this Act the Board may collect impound take use divert and appropriate for the purposes of their waterworks all such springs and waters as will or may be intercepted by the waterworks authorised by this Act or by the works comprised in the existing undertakings.

Restriction
on works
for abstraction
of
water.

68. The Board shall not construct any works for taking or intercepting water from any lands acquired by or vested in them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament or Order confirmed by Act of Parliament:

Provided also that for the purpose of this section works which are comprised in the existing undertakings and any works constructed taken on lease or purchased by the Board in pursuance of the section of this Act of which the marginal note is "Board to have powers of local authority for supply of water" and any works carried out by the Board under the powers of the section of this Act of which the marginal note is "Power to maintain &c. waterworks" shall be deemed to be situate upon lands which are specified in this Act.

For pro-
tection of
Wendover
Estate.

69.—(1) In this section—

"The owner" means Brigadier-General Lionel Abel Abel-Smith or other the owner or owners for the time being of the estate hereinafter in this section referred to;

"The estate" means the estate of the owner which comprises the protected lands and the restricted lands hereinafter in this section referred to and which is known as "the Wendover Estate" and is situate in the parish of Wendover in the county of Buckingham;

"The protected lands" means the lands forming that part of the estate numbered 49 50 52 54 55 57 to 66 inclusive 71 to 81 inclusive

84 to 89 inclusive 91 to 95 inclusive 97 98 A.D. 1937.
99 105 and 106 on the deposited plans and
in the deposited books of reference for the PART IV.
parish of Wendover; —cont.

“The restricted lands” means the lands forming that part of the estate numbered 110 to 114 inclusive on the deposited plans and in the deposited books of reference for the parish of Wendover;

“The easement lands” means that part of the restricted lands in or over which the Board acquire under this Act easements or rights for the purposes of Work No. 2 authorised by this Act;

“Work No. 2” means so much of Work No. 2 described in the section of this Act of which the marginal note is “Power to make water-works” as is to be situate on the easement lands and includes all works in connection with or subsidiary to so much of the said Work No. 2 as aforesaid.

(2) Notwithstanding anything contained in this Act or in any Act or part of any Act incorporated therewith or shown on the deposited plans the following provisions for the protection of the owner shall except so far as may be otherwise agreed in writing between the Board and the owner apply and have effect in addition to any other provisions enuring for his protection or benefit (that is to say):—

(a) The Board shall not enter upon take or use any part of the protected lands unless and except so far as the same shall have been acquired by the highway authority and become part of the public highway or be included in an order for the compulsory acquisition of the same for highway purposes;

(b) The Board shall not acquire any part of the restricted lands but the Board may acquire in accordance with the provisions of subsection (1) of the section of this Act the marginal note of which is “Acquisition of easements” such easements or rights in or over the restricted lands as they may require for the purposes of

A.D. 1937.

PART IV.
—cont.

Work No. 2 including the making enlarging maintaining repairing inspecting cleansing managing using and working thereof and obtaining access thereto Provided that subsection (2) of that section shall not apply to such easements or rights or to the lands subject thereto or to the Board or the owner in respect thereof;

- (c) The Board shall not fence off or sever from the adjoining lands any part of the easement lands but after the covering in of Work No. 2 the owner his lessees and tenants shall have the same rights of passing over and using the easement lands including the right to construct and maintain thereover a road or roads and footpaths and to lay down and maintain sewers and other works as if such lands had not been taken or used by the Board but so as not in any way to injure or endanger the works of the Board;
- (d) Before entering upon any part of the easement lands for the purpose of constructing maintaining enlarging or renewing Work No. 2 the Board shall give not less than three weeks' written notice to the owner of their intention so to do and the construction maintenance enlargement or renewal of Work No. 2 shall be completed with all reasonable dispatch from the expiration of such notice as aforesaid;
- (e) In the construction and maintenance of Work No. 2 the Board shall first remove from the surface all vegetable soil on the line or site of Work No. 2 and deposit the same on such part of the estate as the owner shall reasonably approve (the part so approved being notified to the Board within fourteen days after application has been made therefor) and on the completion of such construction or maintenance they shall replace such soil so as to restore the surface as nearly as reasonably may be to its former level and state Provided that if the owner shall fail to give such notification to the Board within the said period of fourteen days the provisions of this section in regard to such deposit as aforesaid shall cease to have effect

No surplus soil or material excavated in the construction or maintenance of any of the works by this Act authorised shall be deposited on any part of the estate except—

A.D. 1937.

PART IV.
—cont.

(i) temporarily in such a position on the easement lands; or

(ii) temporarily or permanently on any such part of the estate within a reasonable distance from the easement lands;

as may be agreed between the Board and the owner or failing agreement determined by arbitration. No materials other than such as shall be required for the construction of Work No. 2 shall be deposited upon any part of the easement lands;

(f) The Board shall in constructing and maintaining Work No. 2 through the easement lands fence in all excavations from time to time made on such lands or in some other effectual manner prevent cattle sheep or other animals from falling into such excavations and the Board shall when the works are completed remove such fences;

(g) The Board shall not excavate any materials from any part of the estate other than from the easement lands and except so far as may be necessary in the course of constructing maintaining repairing inspecting cleansing managing using working and enlarging Work No. 2 on the easement lands;

(h) The Board shall lay all lines of pipes laid in the easement lands so far as reasonably practicable so that the top thereof shall not be nearer to the present surface of the land than three feet;

(i) All walls fences gates sewers drains pipes water supplies or other like matters and things belonging to the owner which may be interfered with by the Board during the construction or maintenance of Work No. 2 shall subject to the provisions of this section be made good as soon as reasonably practicable by the Board who shall in such construction and maintenance do as little damage as is reasonably possible

A.D. 1937.

PART IV.

—cont.

to the estate and to the user and enjoyment thereof;

(j) As soon as reasonably practicable after Work No. 2 shall have been laid through the easement lands any telegraph or telephone wires or other means of communication laid by the Board through the easement lands shall be placed underground by the side of and as near as practicable to Work No. 2;

(k) In the event of any tramroad being constructed by the Board through any part of the easement lands the following provisions shall apply (namely) :—

(i) Such tramroad shall be laid as near as reasonably practicable to the line of Work No. 2;

(ii) Such tramroad shall be used only during and for the purposes of the construction of Work No. 2 or of any works of maintenance or renewal thereof and on the completion of such construction or work (as the case may be) the said tramroad shall be removed by the Board and the surface of the land over which the same shall have been constructed restored to the satisfaction of the owner;

(iii) The Board shall at the option of the owner (to be notified in writing to the Board within fourteen days after the receipt of the notice required to be given by paragraph (d) of this subsection) either—

effectually fence the said tramroad off from the adjoining land of the owner and make such crossing-places and erect such gates thereover as the owner shall reasonably require and keep any such fences crossing-places and gates in reasonable repair and on the removal of the said tramroad remove such fences and gates; or

leave the said tramroad unfenced and erect and maintain a gate wheresoever the said tramroad shall intersect a wall

or fence or cross a road and on removal of the said tramroad remove such gates and reinstate the wall or fence across which the gate was erected to the reasonable satisfaction of the owner. The Board shall keep all such gates to be erected as last aforesaid closed except when opened for the purpose of the user of the said tramroad;

A.D. 1937.

PART IV.

—cont.

(iv) The Board shall take all reasonable means for the prevention of trespass upon the said tramroad or the site of Work No. 2;

(v) The Board shall not in any fence to be erected by them on any part of the estate use barbed wire;

(l) The Board shall in addition to any other compensation payable to the owner his lessees or tenants under or by virtue of this Act or any Act or any part of any Act incorporated therewith make full compensation to the owner and his lessees or tenants for—

(i) all damage and loss caused by any negligence of the Board their contractors officers or servants or any workmen employed by them respectively in the construction maintenance and use of any of the works by this Act authorised or the exercise of any of the powers granted by this Act or any Act or any part of any Act incorporated therewith;

(ii) all damage and loss occasioned to their stock trees or crops by any act of the Board their contractors officers or servants or any workmen employed by them respectively or caused by or consequent upon the working of the said tramroad (whether the same shall be fenced off from the adjoining lands or not) or the construction or maintenance of any of the works by this Act authorised and for all damage done by fires caused by engines or locomotives used upon the tramroad or in the construction of any of the works by this Act authorised;

A.D. 1937.

PART IV.
—cont.

- (m) No servant of the Board shall after the completion of the works by this Act authorised so far as the same are to be constructed on the estate or any adjoining lands enter upon any part of the estate unless such servant shall be wearing some distinguishing uniform or badge or hold some written or printed authority from the Board and be engaged upon the business of the Board;
- (n) If any question (other than any question to which the provisions of the Lands Clauses Acts apply) shall arise between the Board and the owner under this section the same shall be determined by arbitration under this Act;
- (o) The foregoing provisions of this section shall so far as applicable extend and apply (*mutatis mutandis*) for the protection and benefit of the owner and the Board in relation to any extension enlargement alteration reconstruction renewal or removal of Work No. 2 and additional lines of pipes under the provisions of the section of this Act of which the marginal note is "Period for completion of waterworks and enlargement of works."

For protection of conservators of river Thames.

70. For the protection of the conservators of the river Thames (in this section referred to as "the conservators") the following provisions shall unless otherwise agreed in writing between the Board and the conservators have effect (that is to say):—

- (1) So much of Work No. 2 authorised by this Act as is proposed to be constructed over or under the river Thame shall be executed and maintained in accordance with plans and sections to be submitted to and to be subject to the reasonable approval of the conservators and shall be executed to the reasonable satisfaction of the engineer of the conservators and when commenced shall be proceeded with and completed as quickly as is reasonably practicable:
- (2) The said Work No. 2 where it crosses the said river at Cuddington Bridge shall be so laid as not to reduce in any way the existing opening for the passage of water under the bridge and the underside of the said work shall be laid at

such a level as not to reduce the existing headway above river level at the site of the bridge :

A.D. 1937.

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PART IV.
—cont.

- (3) The Board shall give to the conservators at least one week's notice in writing of the date on which they intend to commence the construction of so much of Work No. 2 as aforesaid :
- (4) The Board shall on completion of the permanent works affecting the said river and upon reasonable notice from the conservators so to do remove any temporary works and materials for temporary works which may have been placed in the said river by or at the instance of the Board and on their failing so to do the conservators may remove the same charging the Board with the expense reasonably incurred in so doing and the Board shall forthwith repay to the conservators all expenses so incurred :
- (5) All piles and other works placed by the Board in the bed of the said river (not forming part of the permanent works) shall be drawn and not cut off :
- (6) The Board shall not (except so far as shall be necessary in the construction of so much of the said Work No. 2 as aforesaid and the works connected therewith) take any gravel soil or other material from the bed of the said river without the previous consent of the conservators signified in writing under the hand of their secretary which consent shall not be unreasonably withheld :
- (7) Any difference which may arise between the Board and the conservators under this section shall be referred to and determined by arbitration.

71. Notwithstanding anything in this Act the following provisions for the protection of the River Great Ouse Catchment Board shall unless otherwise agreed in writing between the Board and that catchment board apply and have effect :—

For protection of River Great Ouse Catchment Board.

(1) In this section—

“ the catchment board ” means the River Great Ouse Catchment Board ;

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PART IV.
—cont.20 & 21
Geo. 5. c. 44.

“the Ouse area” means the river Great Ouse catchment area as for the time being constituted;

“authorised work” means work authorised by this Act;

“drainage authority” means a drainage board constituted or to be treated as having been constituted under the Land Drainage Act 1930 and having jurisdiction in the Ouse area;

“banks” has the meaning assigned to that expression by the Land Drainage Act 1930;

“watercourse” includes—

(i) any main river and any other river and any stream ditch drain cut culvert dyke sluice sewer (other than a sewer under the control of a local authority within the meaning of the Public Health Act 1875) or passage through which water flows and the banks thereof;

(ii) any drainage work and the banks thereof;

under the jurisdiction of any drainage authority:

(2) In the execution of any authorised work the Board shall not diminish the width between the banks of any watercourse except with the consent of the catchment board which consent shall not be unreasonably withheld:

(3) Except with the consent of the catchment board which shall not be unreasonably withheld the Board shall not execute any authorised work which affects any watercourse otherwise than—

(a) in such manner as not to interrupt the free passage of water through or in such watercourse; and

(b) (i) in such manner as to allow the free passage of flood-water under the work or
(ii) so that the top or upper surface of the work shall be situate at such depth below

the watercourse as to allow the proper cleansing and scouring of the watercourse and (in the case of the main river at Paper Mill Farm near Great Brickhill) the deepening of the bed thereof to such extent as may be reasonably necessary for the improvement of such watercourse :

A.D. 1937.

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PART IV.
—cont.

(4) (a) The Board before commencing to execute any authorised work in over or under or within a distance of ten feet from any watercourse shall submit to the catchment board plans and sections and (when reasonably required by the catchment board) working drawings thereof for their reasonable approval. If the catchment board do not within twenty-one days after the submission to them of any such plans sections and drawings signify to the Board in writing their approval or disapproval thereof they shall be deemed to approve thereof ;

(b) Such authorised work shall not be constructed otherwise than in accordance with such plans sections and drawings (if any) as may be approved or deemed to have been approved as aforesaid by the catchment board or if such approval be withheld as may be settled by arbitration and shall be executed to the reasonable satisfaction of the catchment board and under the superintendence of the engineer to the catchment board if the engineer elects to superintend after receiving reasonable notice of the date when the work is to be commenced :

(5) The Board shall at all reasonable times afford to the engineer of the catchment board or his duly authorised representative access to so much of any authorised work as is situate in over or under or within ten feet from any watercourse during the construction thereof for the purpose of inspection :

(6) The construction of any authorised work so far as it affects a watercourse shall when commenced be continued uninterruptedly so far as may be reasonably practicable until completion :

A.D. 1937.

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PART IV.
—cont.

(7) (a) Not less than fourteen days before commencing to discharge water directly or indirectly into any watercourse in the exercise of the powers of this Act the Board shall (except in case of emergency) give to the catchment board notice in writing of their intention so to do specifying the date time of commencing and probable duration of the discharge and the point at which the water will be discharged and (if pumping plant is to be used in connection with the discharge) the maximum capacity of the plant;

(b) Where the Board discharge water during an emergency they shall as soon as is reasonably possible give to the catchment board notice thereof in writing and shall also supply to the catchment board such further particulars (if any) relative to such discharge as the catchment board may reasonably require:

(8) Any question or difference between the Board and the catchment board under this section shall be referred to and determined by arbitration.

For protection of
transport
undertakers.

72. For the protection of the transport undertakers the following provisions shall unless otherwise agreed in writing between the transport undertakers and the Board apply and have effect (that is to say):—

(1) In this section unless the context otherwise requires—

“the engineer” means the engineer of the transport undertakers;

“the authorised works” means so much of any work authorised by this Act to be executed as may be situate upon across over or under or as may in any way affect any railway or property or work of the transport undertakers:

(2) In constructing laying down and executing and also (except in cases of emergency) in effecting the repairs or renewals of the authorised works the same shall be done by and in all things at the expense of the Board (except as in this section is otherwise provided) and under the

superintendence (if the same be given) and to the reasonable satisfaction of the engineer and at such time or times as he shall reasonably approve and so as not to interfere with the structure of any railway or work of the transport undertakers and except in cases of repair according to plans sections specifications and particulars to be submitted to and reasonably approved by the engineer before any of the authorised works shall be executed :

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PART IV.
—cont.

Provided that if the engineer shall not signify his approval or disapproval of such plans sections specifications and particulars within twenty-one days after they shall have been submitted to him he shall be deemed to have approved thereof:

- (3) The Board shall restore and make good to the reasonable satisfaction of the engineer the railways and works of the transport undertakers and the roads which the transport undertakers are liable to maintain over or under any bridge or over any level crossing of any such railway or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any of the operations of the Board :
- (4) If the transport undertakers so elect they may themselves execute and maintain the authorised works (other than the actual laying down and maintenance of the pipes and other water works) and may recover the reasonable cost of so doing from the Board :
- (5) The authorised works shall be constructed executed and maintained so as to cause as little injury as may be to the railways or works or property of the transport undertakers and so as not to cause any interruption to the passage or conduct of traffic over any such railway and if any such injury or interruption shall arise from the acts or operations of the Board or by reason of the failure of the Board to maintain the authorised works or if any bursting leakage or failure of the authorised works shall cause any injury to any railway or work or property

A.D. 1937.

PART IV.

—cont.

of the transport undertakers all such injury shall forthwith be made good by the Board at their own expense and to the reasonable satisfaction of the engineer and the Board shall be responsible for and save harmless and indemnify the transport undertakers from all claims in respect of any such injury or interruption and shall make compensation to the transport undertakers for and in respect thereof and compensation for any disturbance of traffic which the construction or maintenance of the authorised works may entail :

- (6) In the event of the Board failing to make good such injury as aforesaid or failing to maintain the authorised works in substantial repair and good order to the reasonable satisfaction of the engineer the transport undertakers after giving to the Board not less than fourteen days' notice except in case of emergency when they shall give the longest notice practicable may make good the same and make and do in and upon as well the lands of the Board as their own lands all such repairs and things as may be reasonably requisite and recover the reasonable expense thereof from the Board :
- (7) If by reason of the construction or maintenance of the authorised works it shall become necessary to reconstruct alter strengthen underpin or in anywise interfere with the structure of any bridge embankment or other work of the transport undertakers such reconstruction alteration strengthening or underpinning may be carried out by the transport undertakers after seven days' notice of their intention so to do to the Board at such times and in such manner as they think expedient or necessary and the reasonable costs thereof shall be repaid to the transport undertakers by the Board :
- (8) If it should be necessary during the construction of the authorised works or by reason of the existence of the same to alter any of the telegraph telephone or signal posts wires or cables or other work or apparatus belonging to or on any railway of the transport undertakers the

transport undertakers may effect such alterations and the Board shall repay to them the reasonable expenses incurred by them in and connected with such alterations :

A.D. 1937.

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PART IV.
—cont.

- (9) The Board shall not under the powers of this Act enter upon take or use any lands of the transport undertakers save and except that the Board may acquire and the transport undertakers on being required so to do by the Board shall sell to the Board such rights or easements as may be necessary to enable the Board to construct and maintain the works authorised by this Act so far as the same will be situate upon across over or under such lands and the Board shall pay to the transport undertakers for any right or easement which they may so require the transport undertakers to sell such sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts :
- (10) The Board shall bear and on demand pay to the transport undertakers the reasonable expense of the employment by them during the construction and maintenance of the authorised works of such inspectors signalmen or watchmen (if any) to be appointed by the transport undertakers as may be reasonably necessary for watching and protecting their railways and the conduct of the traffic thereon with reference to and during the execution and maintenance of the said works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Board or their contractors or any person or persons in the employ of the Board or their contractors :
- (11) Before the construction of the authorised works any temporary works which may in the opinion of the engineer be reasonably necessary to ensure the stability of the railways or works or property of the transport undertakers may

A.D. 1937.

PART IV.

—cont.

be carried out by the transport undertakers and the reasonable costs of any such temporary works as are reasonably necessary for such purpose and any reasonable expenses incurred in connection therewith shall be repaid by the Board to the transport undertakers :

- (12) If it shall be reasonably necessary at any time (either before or during the construction or within one year after the completion of the authorised works and in consequence of such construction) that any further or other works or appliances be constructed or measures of precaution taken either by way of addition to the existing works of the transport undertakers or in connection with the authorised works or in relation to the method of construction of the authorised works so as to prevent the subsidence of or injury to any of the railways or works of the transport undertakers or any property of the transport undertakers which is adjacent to any such railways or works the Board shall on being thereunto reasonably required in writing under the hand of the engineer make and execute at their own expense and according to plans sections and specifications to be prepared by him and reasonably approved by the engineer to the Board such works or take such measures of precaution including the temporary cessation of the construction of the authorised works as the engineer shall reasonably require. The construction of the authorised works when commenced shall proceed with all reasonable dispatch :

- (13) If the transport undertakers at any time or times hereafter in pursuance of any powers existing at the passing of this Act require to construct any additional or other works upon their lands or railways or to extend alter or repair any railway or other work upon across over or under which any of the works authorised by this Act may have been constructed the transport undertakers may

after giving to the Board not less than twenty-one days' notice in writing under the hand of their secretary (or in case of emergency after giving such notice as is reasonably practicable) divert support or carry such work across over or under the railway or work at such other point as may be reasonable or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be and so as not to interrupt or interfere with the flow of water without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such work :

A.D. 1937.

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PART IV.
—cont.

Provided that any works executed by the transport undertakers under this subsection shall be executed in accordance with plans sections specifications and particulars to be previously submitted to and reasonably approved by the Board and to the reasonable satisfaction of the Board :

Provided also that if the Board so elect they may themselves execute so much of any works which but for this proviso would be executed by the transport undertakers under this subsection as consists of the actual laying down of a pipe or other waterwork authorised by this Act :

- (14) Any additional expense which the transport undertakers may reasonably incur in widening altering reconstructing repairing or maintaining in pursuance of any powers existing at the passing of this Act any of their railways or works by reason of the existence of the authorised works shall be paid by the Board :
- (15) Nothing in this section contained shall prejudice alter or affect the rights of the transport undertakers or the Board under any agreement between them or their respective predecessors relating to mains pipes or other works of the Board and where the provisions of such agreement are inconsistent with the provisions of this section the provisions of the said agreement shall apply :

A.D. 1937.

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PART IV.
—cont.

(16) For the purposes of subsections (4) (6) (7) (8) (10) and (11) of this section any costs or expenses incurred by the transport undertakers shall include compensation payable to any workmen or the legal representatives or dependents of workmen who may be injured or killed whilst employed by the transport undertakers in and about the works or operations respectively mentioned in the said subsections :

(17) Except as in this section otherwise expressly provided any difference arising between the Board and the transport undertakers or the engineer respecting any of the matters referred to in this section shall be referred to and determined by arbitration.

For pro-
tection of
highway
and bridge
authorities.

73. For the protection of the highway authority and the bridge authority (as respectively hereinafter defined) the following provisions unless otherwise agreed in writing between the highway authority or the bridge authority as the case may require and the Board shall have effect with respect to the exercise in or affecting any highway or bridge of any of the powers of this Act (that is to say) :—

(1) In this section—

“ bridge authority ” means—

(i) in the case of a county bridge the county council of the administrative county in which the bridge is situate ;

(ii) in the case of a bridge which carries a highway repairable by the inhabitants at large but is not a county bridge the council who are the highway authority in respect of that highway ;

“ highway authority ” means in the case of a highway repairable by the inhabitants at large the council in whom that highway is vested ;

“ bridge ” includes the approaches to the bridge and the roadway and footways (if any) over such bridge and approaches ;

“ apparatus ” includes any main pipe or other work of the Board ;

“ along ” includes in on under across at the side of and attached to ; A.D. 1937.

“ surveyor ” means the surveyor to the highway authority or the bridge authority as the case may require :
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—cont.

- (2) All apparatus of the Board to be laid along any highway or bridge shall where reasonably practicable be laid in such position in or at the side thereof and at such depth as the surveyor may reasonably direct and the Board shall during the execution of the work erect such traffic signs and signals as the surveyor may reasonably require :
- (3) The notice required by section 30 of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall be not less than in the case of a bridge fourteen clear days and in other cases seven clear days :
- (4) The Board shall not except with the consent of the bridge authority (a) carry any apparatus along any bridge which in the opinion of the authority is unsuitable for the purpose or (b) interfere with the structure of any bridge but such consent shall not be unreasonably withheld and may be given upon such conditions as the bridge authority may reasonably determine :
- (5) Nothing in this Act shall interfere with the right of the highway authority to alter the level of deviate widen reconstruct or improve (each of which works is in this section referred to as a “ highway alteration ”) any highway along which any apparatus shall have been laid and the Board shall with all reasonable dispatch on receiving notice so to do alter the position of any such apparatus in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration and the highway authority shall repay to the Board the expense reasonably incurred by the Board in effecting any such alteration of the position of any such apparatus :

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PART IV.
—cont.

- (6) Nothing in this Act shall interfere with the right of the bridge authority at any time to remove alter rebuild widen or repair (each of which works is in this section referred to as a "bridge alteration") any bridge along or near to which any apparatus of the Board is carried in the same manner as they might have carried out a bridge alteration if this Act had not been passed and such apparatus had not been laid along or near to such bridge and the bridge authority shall not make any compensation to the Board for any expense or loss to which the Board may be put by reason or in consequence of any such bridge alteration and in the event of any such bridge alteration being carried out the Board shall at their own cost in all things alter the position of any apparatus to the reasonable satisfaction of the bridge authority and any additional expense in relation to the bridge alteration to which the bridge authority may be put by reason of the necessity for providing for any apparatus of the Board shall be paid by the Board to the bridge authority Provided that the bridge authority shall (except in case of emergency) give notice to the Board of any such alteration and during the bridge alteration shall so far as they are able to do so afford all reasonable facilities to enable the Board temporarily to carry such apparatus across any stream or brook so as not to interrupt the continuous flow of water through such apparatus :
- (7) When any highway alteration or bridge alteration shall have been completed the Board shall have the same rights and powers with respect to the highway or bridge as they had with respect thereto before such alteration was carried out :
- (8) Subject to the provisions of the section of this Act of which the marginal note is "Temporary stoppage of streets" all works of the Board shall be so executed that so far as reasonably practicable no highway or bridge shall be

completely closed to traffic and the Board shall not break up at any one time a greater length of the roadway than shall be reasonably specified by the surveyor :

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—cont.

- (9) The highway authority or the bridge authority (as the case may be) may if so requested by the Board or by any contractor employed by the Board themselves restore such portion of the highway or bridge as has been broken up by the Board or by such contractor on their behalf and the Board shall themselves repay to the highway authority or the bridge authority all expenses reasonably incurred by the highway authority or the bridge authority in making such restoration :
- (10) The Board shall pay to the highway authority or to the bridge authority the reasonable expenses (if any) incurred by them in relation to the reasonable superintendence by the surveyor of the restoration by the Board of any highway or bridge :
- (11) Where for the purposes of the Board boxes or other like apparatus shall be placed in the surface of the carriageway of any highway or bridge the surveyor may require the same to be surrounded or protected by sett paving or other adequate form of protection and the Board shall at their own cost provide such protection to the reasonable satisfaction of the surveyor Any such sett paving or other form of protection whether placed at the request of the surveyor or otherwise shall be deemed to form part of the apparatus in connection with which it is provided :
- (12) Any consent approval notice intimation requirement or direction to be given under this section shall be given in writing under the hand of the clerk of the highway authority or the bridge authority or the surveyor :
- (13) Any difference which may arise under this section shall be referred to and determined by arbitration.

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As to trunk
roads &c.

74. As respects a trunk road or a bridge over which a trunk road passes references in this Act to a highway authority or a bridge authority or to their clerk or surveyor shall be construed as references to the Minister of Transport and any consent approval notice intimation requirement or direction to be given by such authority clerk or surveyor under the provisions of this Act shall in relation to any such road or bridge be given in writing by the Minister of Transport.

For pro-
tection of
Grand
Union
Canal
Company.

75. For the protection of the Grand Union Canal Company (hereinafter in this section referred to as “the canal company”) the following provisions shall notwithstanding anything in this Act and unless otherwise agreed in writing between the Board and the canal company have effect in relation to the exercise by the Board of the powers of this Act in so far as the same relate to property of the canal company (that is to say) :—

(1) The Board shall not under the powers conferred upon them by the section of this Act of which the marginal note is “Power to take lands” enter upon take or use any lands which form part of the canal undertaking of the canal company but subject to the provisions of subsection (2) of this section the Board may purchase and take and the canal company shall if so required by the Board sell and grant such easements and rights as may be reasonably required by the Board for constructing maintaining renewing and using or altering or removing Work No. 11 authorised by this Act in or over such lands and the provisions of the Lands Clauses Acts with respect to lands shall (subject to the provisions of this Act) extend and apply to such easements and rights as if the same were lands within the meaning of those Acts :

(2) The Board shall not without the previous consent in writing of the canal company lay any main pipe or other work for supplying or in connection with the supply of water (all of which are hereinafter included in the expression “work of the Board”) in under through or over or across the canal of the

canal company or the towing-path thereof or other property of the canal company otherwise than in the roadway of a fixed bridge carrying a public carriage road over the same. The consent of the canal company under this subsection shall not be unreasonably withheld and any question, whether or not such consent is unreasonably withheld shall be referred to arbitration:

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- (3) Except so far as may be necessary for carrying out any work of the Board no injury to or interference with the structure of any bridge which belongs to the canal company or which they are liable to maintain or to or with the canal towing-path or other property of the canal company and (except as aforesaid) no interruption to the traffic on the canal or towing-path of the canal company shall be occasioned in the laying maintenance repair renewal relaying or enlarging of any work of the Board:
- (4) The canal company may at any time and from time to time upon giving to the Board not less than twenty-eight days' previous notice in writing of their intention so to do (except in cases of emergency in which case notice shall be given as soon as practicable) alter repair or renew any bridge (including the approaches thereto) belonging to the canal company or which they are liable to maintain (being a bridge existing at the passing of this Act or erected by the canal company after the passing of this Act under their existing powers) in over or across which any work of the Board has been laid in the same manner as they might have done if this Act had not been passed and the Board shall at their own cost and to the reasonable satisfaction of the engineer of the canal company alter the position of the said work of the Board or temporarily support the same or take such other steps in relation to the said work as may be reasonably necessary to enable the canal company to carry out such alteration repair or renewal and the

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provisions of this section shall apply to the said work in its altered position. Provided that during such alteration repair or renewal the canal company shall afford to the Board reasonable facilities for carrying the said work of the Board across the canal:

- (5) All operations of the Board in relation to the laying maintenance repair renewal relaying or enlarging of any work of the Board in over or across any such bridge of the canal company or which they are liable to maintain or in or under the approaches thereto so far as maintainable by the canal company shall be carried out to the reasonable satisfaction of the engineer of the canal company and except in cases of emergency under his supervision (if the same be given) and according to plans to be reasonably approved by him before the work is commenced. Provided that if the said engineer shall not approve or disapprove of such plans within fourteen days after the same shall have been submitted to him he shall be deemed to have approved thereof:
- (6) Any question or difference between the Board and the canal company under this section shall be referred to and determined by arbitration.

For protection of
Chiltern
Hills Spring
Water
Company.

76. The following provisions for the protection of the Chiltern Hills Spring Water Company shall unless otherwise agreed in writing between the Board and the said company apply and have effect with respect to the Wendover pumping station (Work No. 1) authorised by this Act (that is to say):—

(1) In this section—

“the company” means the Chiltern Hills Spring Water Company;

“day” means a day of twenty-four hours;

“the maintainable yield” means the yield of water per day (to be determined as provided in this section) which could be relied upon for supply from the Wendover pumping station if that pumping station were constructed so as to be capable of obtaining

the greatest quantity of water reasonably obtainable therefrom (under and subject to the provisions of this Act and any such further statutory powers as are referred to in subsection (3) hereof) when being operated to its full capacity for twenty consecutive hours a day;

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“ reserved water ” means the daily quantity of water to be reserved for the time being for the company under subsection (5) of this section :

- (2) (a) Before the construction of the Wendover pumping station is completed by the Board the maintainable yield shall be agreed between the Board and the company or determined by arbitration ;

(b) Either the Board or the company may at any time after the expiration of five years from the date upon which the Wendover pumping station is first brought into operation for the purposes of supply (which date shall be agreed in writing between the Board and the company or determined by arbitration) and at any time after the expiration of any subsequent period of five years from the last preceding notice under this subsection by notice in writing to the other of them require that the maintainable yield shall be re-estimated and in the event of such requirement the maintainable yield shall be estimated by pumping test and again agreed or failing agreement re-determined by arbitration and as from the date of such new agreement or re-determination the maintainable yield shall (subject to any future agreement or re-determination) be deemed to be the quantity of water so last agreed or determined :

- (3) The Board shall so construct the well or wells boreholes and adits at the Wendover pumping station as to be capable (when any necessary buildings works or machinery have been provided) of supplying the maintainable yield and if for the purpose of enabling the Board

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to supply the maintainable yield any further statutory powers are required by the Board they shall apply for and use their best endeavours to obtain such statutory powers as soon as is reasonably practicable after the maintainable yield has been agreed or determined under paragraph (a) of subsection (2) of this section :

(4) Subject to the provisions of this section the company shall be entitled within two months after the date upon which the maintainable yield has first been agreed or determined to give to the Board notice in writing requiring the Board to construct the Wendover pumping station of a capacity sufficient to obtain therefrom such daily quantity of water as may be sufficient to meet the requirements of the Board (such requirements not to exceed one-half of the maintainable yield or a daily quantity of six hundred thousand gallons whichever be the greater) and in addition the maximum daily amount which the company may at any time require to be supplied to them by the Board (such maximum amount to be specified in such notice) not exceeding one-half of the maintainable yield or the amount by which the maintainable yield exceeds six hundred thousand gallons (whichever be the less) :

(5) Subject to the provisions of this section—

(a) The company shall within two months after the date upon which the maintainable yield has first been agreed or determined serve on the Board notice in writing requiring the Board to reserve for supply to them in bulk a daily quantity of water to be specified in such reservation notice but not being less than one-half of the aggregate quantity of water to which the company are entitled in pursuance of the last preceding subsection of this section and not exceeding the maximum daily quantity to which the company are so entitled ;

(b) The company shall be entitled within two months after the expiration of every successive period of five years from the date upon which the maintainable yield has first been agreed or determined to serve on the Board notice in writing requiring the Board to reserve for supply to them in bulk the additional daily quantity of water specified in such notice. Provided that the aggregate daily quantity of water to which the company shall be entitled in pursuance of any notice or notices served by them under this paragraph together with any quantity to which the company are entitled in pursuance of the notice served by them under paragraph (a) of this subsection shall not exceed the total quantity of water to which the company are entitled under the provisions of the last preceding subsection of this section;

(c) Any notice served by the company under the provisions of this subsection is in this section referred to as "a reservation notice":

- (6) From the date upon which the Wendover pumping station is first brought into operation for the purposes of supply and so long as the Board continue to take water by means of that pumping station the Board shall (subject as is in this section provided) supply to the company from the Wendover pumping station such daily quantity of water (if any) as the company may from time to time require but not exceeding the quantity specified in the reservation notice which is for the time being in operation and the company shall make to the Board the payments hereinafter prescribed:
- (7) The Board shall not incur any liability in respect of a failure to supply water under this section if the failure is due to frost unusual drought or other unavoidable cause:
- (8) The company shall pay to the Board in each year as from the date of the commencement of

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—cont.

the construction of the Wendover pumping station—

(a) such proportion of a sum equal to four per centum upon the aggregate sum expended by the Board on capital account on the Wendover pumping station up to the end of the year for which such payment is made as the reserved water shall bear to the maintainable yield;

(b) such proportion of the cost in the year for which such payment is made of working maintaining and managing the Wendover pumping station (including all rates and taxes payable in respect thereof) as the quantity of water specified in the reservation notice which is for the time being in operation shall bear to the maximum daily quantity of water abstracted by the Board during that year from the Wendover pumping station :

(9) The company may within six months after the date on which the maintainable yield has been agreed or determined under subsection (2) (a) of this section elect to take all or part of their supply from a point to be agreed between the Board and the company on Work No. 2 authorised by this Act instead of from the Wendover pumping station and in that case the company shall pay to the Board in each year as from the date of the commencement of the construction of the said Work No. 2 such proportion of a sum equal to four per centum upon the sum expended by the Board in respect of such part of Work No. 2 as is used by the Board and the company jointly as the average daily quantity which the said part of Work No. 2 is designed to carry on behalf of the company bears to its full designed average daily capacity and in addition the company shall pay their due share of all rates and taxes in respect of the said part of Work No. 2 :

(10) Either the Board or the company may within three months after the expiration of ten years from the date upon which the Wendover

pumping station is first brought into operation and within three months after the expiration of every subsequent period of ten years and after giving notice in writing of such application to the company or the Board (as the case may be) apply to the Minister to increase or reduce the rate of four per centum provided for under subsection (8) of this section and upon such application the Minister may after hearing the Board and the company make an order substituting for the said rate of four per centum such rate per centum as having regard to all the circumstances (including the then value of money) he thinks reasonable and after any such order the said subsection (8) shall be read and have effect as if the rate mentioned in such order were provided for thereunder in lieu of four per centum :

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- (11) (a) As soon as practicable after the thirty-first day of March the thirtieth day of June the thirtieth day of September and the thirty-first day of December in each year the Board shall prepare and send to the company an account showing the amount due from the company under subsections (8) and (18) of this section in respect of the preceding three months and such accounts shall be based until the termination of the first year in which water is supplied under this section to the company on estimates prepared by the Board and thereafter each such account shall be based upon approximate figures prepared by the Board provisionally and shall be subject to adjustment when the final accounts for the year are prepared as hereinafter mentioned;

(b) The company shall pay to the Board the amount due from them in respect of the three months to which the account relates within the period of twenty-one days from the receipt of the account which amount shall be deemed to be a debt due from the company to the Board and if unpaid within the said period shall bear interest at the rate of five per centum per annum from the expiration of that period until payment;

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(c) As soon as practicable after the end of each year ending on the thirty-first day of March final accounts in respect of that year shall be prepared by the Board and delivered to the company showing—

(i) the actual amount payable by the company under this section in respect of the year; and

(ii) the balance due from or to the company which balance shall be deemed to be a debt due by the company to the Board or by the Board to the company (as the case may require) and if unpaid within the period of fourteen days from the receipt of the final account shall bear interest at the rate of five per centum per annum from the expiration of the said period until payment :

(12) The point at which water shall be supplied to the company under this section shall be such point at the Wendover pumping station except as alternatively provided in subsection (9) hereof as shall be agreed between the Board and the company or as failing agreement shall be determined by arbitration and any lines of pipes or other works required for enabling the company to take a supply of water at that point shall be laid by the company but all works for connecting such lines of pipes or other works of the company with the works of the Board at such point shall be executed by the Board and the cost of so doing shall be repaid by the company to the Board :

(13) For the maintenance testing cleaning altering extending or repairing of their waterworks the Board may after giving (except in emergency) not less than fourteen days' notice to the company discontinue temporarily the supply of water to the company for such a period or periods as may be reasonably requisite Provided that the Board shall if and so far as is reasonably practicable (and if so required by the company) make good to the company the aggregate quantity of water of which the company were deprived by such discontinuance

and such making good shall be effected at such times and in such manner as may be agreed between the Board and the company or failing agreement determined by arbitration :

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(14) A supply of water under this section to the company shall be given and received in a regular flow for a period of not less than sixteen hours in any day (subject to any adjustment which may be necessary in order to give effect to the proviso to the immediately preceding subsection of this section) at a pressure during the hours of pumping of not less than is equivalent to six hundred and seventy feet above ordnance datum measured on the rising main at the Wendover pumping station and the works of the company shall be so constructed and maintained that the water shall at all times be capable of flowing from the works of the Board to the works of the company under the pressure of water in the said works of the Board at the point where such works are connected with the works of the company and so as not to interfere with the free and unrestricted flow of water in the works of the Board. Provided that any variation in the flow of the supply due to variations in the demand of consumers of the company shall not prevent the supply being deemed to be given and received in a regular flow for the purposes of this subsection but the quantity of water taken by the company in any week shall not exceed seven times the reserved water :

(15) (a) The water supplied to the company under this section shall be measured by a meter or meters to be fixed on the pipes of the company as near as practicable to the point or points at which the water is delivered to the company ;

(b) Any such meter shall be provided and fixed by the Board in a building or chamber to be erected by them at the expense of the company on the site of the Wendover pumping station and if necessary at the point of supply referred to in subsection (9) hereof ;

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(c) Any such building or chamber shall be under the sole control of the Board and be maintained by them;

(d) Any such meter shall also be under the sole control of the Board and be maintained by them but the company shall at all reasonable times be at liberty by themselves or their engineer to inspect the meter (on giving to the official of the Board having charge of the meter sufficient notice to enable him to have it opened for inspection) and to require its accuracy to be tested;

(e) The company shall repay to the Board on demand all costs incurred by the Board in erecting any such building or chamber and in providing and fixing any such meter and of and incident to any testing of the meter;

(f) The company shall also repay to the Board the reasonable costs incurred by the Board in maintaining and repairing any such building or chamber and in maintaining and keeping in proper condition and working order and when necessary renewing any such meter and any subsidiary apparatus. All payments under this paragraph shall be made quarterly on or before the same dates as the payments under subsection (11) of this section are required to be made:

(16) (a) The register of any meter or meters provided under this section shall be prima facie evidence of the quantity of water supplied by the Board;

(b) If any such meter at any time registers incorrectly the Board on becoming aware thereof shall within a reasonable time repair it or replace it with a correct meter. If the meter is removed for any reason the Board shall refix or replace it within a reasonable time;

(c) If any meter shall have been removed or shall have been proved to have registered incorrectly during any period the quantity of water supplied during that period shall be determined according to the best estimate

reasonably possible having regard to all the circumstances : A.D. 1937.

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- (17) (a) If the company or the Board at any time within six months after the expiration of fifteen years and thirty years respectively from the date upon which the Wendover pumping station is first brought into operation for the purposes of supply make application to the Minister for an order to alter the maximum daily amount which the company may require to be supplied to them by the Board as fixed under subsection (4) of this section the amount shall be reviewed by the Minister and in considering any application which may be made to him for an order under this subsection the Minister shall have regard to all relevant circumstances including any alteration in the conditions with regard to water supply prevailing at the time of such application and the requirements of the Board and the company and the availability to the Board or the company of other sources of supply at a reasonable cost.

(b) On such application the Minister may after hearing the Board and the company by order alter or amend the said maximum daily amount of water which the Board may be required to supply to the company (and may if necessary increase or reduce the proportion of the maximum yield which shall be available for the use of the Board) on such terms and conditions as he may think fit and as from the date of such order this section shall be read and have effect (subject to any such terms and conditions) as if the maximum daily quantity specified in such order were substituted for the amount specified in the notice referred to in subsection (4) of this section :

Provided that the quantity of water which shall be available for the use of the Board from the Wendover pumping station shall in no circumstances be reduced below six hundred thousand gallons per day as a result of any such order :

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(18) (a) Within one month from the date upon which the Wendover pumping station is first brought into operation for the purposes of supply the Board shall estimate their requirements of water from that pumping station for use within the limits of supply and shall give notice in writing to the company specifying what proportion (if any) of the quantity of six hundred thousand gallons of water referred to in subsection (4) of this section will not be required by the Board within the said limits (the proportion so specified being in this subsection referred to as "surplus water");

(b) Within twenty-one days after the receipt of such notice the company shall give notice in writing to the Board stating whether they require the Board to supply to them the whole or any part of the surplus water;

(c) Notwithstanding the provisions of subsections (4) (5) and (6) of this section the Board shall on receipt of such notice in writing from the company supply to the company the whole or such part of the surplus water as may be specified in such last-mentioned notice on the same terms as apply with respect to reserved water and such supply shall be in addition to the quantity available to the company in accordance with the foregoing provisions of this section;

(d) The Board may at any time by twelve months' notice in writing to the company cease to supply to the company the whole or any part of the surplus water which may be required by the Board for the purposes of supply within the limits of supply :

(19) The company shall not supply water outside or for use outside their limits of supply at any time whilst water is being supplied to them by the Board from the Wendover pumping station under the provisions of this section :

(20) Any dispute under this section between the Board and the company shall be referred to arbitration.

77. The following provisions for the protection of the county council of the administrative county of Bedford shall unless otherwise agreed in writing between the Board and the said county council apply and have effect with respect to the Battlesden pumping station (Work No. 12) authorised by this Act (that is to say) :—

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For protection of Bedfordshire County Council.

(1) In this section—

“ the Bedfordshire Council ” means the county council of the administrative county of Bedford;

“ day ” means a day of twenty-four hours;

“ the maintainable yield ” means the yield of water per day (to be determined as provided in this section) which could be relied upon for supply from the Battlesden pumping station if that pumping station were constructed so as to be capable of obtaining the greatest quantity of water reasonably obtainable therefrom (under and subject to the provisions of this Act) when being operated to its full capacity for twenty consecutive hours a day;

“ reservation notice ” means a notice given by the Bedfordshire Council under subsection (4) of this section;

“ reserved water ” means the daily quantity of water to be reserved for the Bedfordshire Council under subsection (4) of this section.

(2) (a) Before the construction of the Battlesden pumping station is completed by the Board the maintainable yield shall be agreed between the Board and the Bedfordshire Council or determined by arbitration under the provisions of this Act;

(b) Either the Board or the Bedfordshire Council may at any time after the expiration of five years from the date upon which the Battlesden pumping station is first brought into operation for the purposes of supply (which date shall be agreed in writing between the Board and the Bedfordshire Council or determined by arbitration) and at any time

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after the expiration of any subsequent period of five years from the last preceding notice under this subsection by notice in writing to the other of them require that the maintainable yield shall be re-estimated and in the event of such requirement the maintainable yield shall be again estimated by pumping test and again agreed or failing agreement re-determined by arbitration and as from the date of such new agreement or re-determination the maintainable yield shall (subject to any future new agreement or re-determination) be deemed to be the quantity of water so last agreed or determined :

- (3) The Board shall so construct the well or wells boreholes and adits (if any) at the Battlesden pumping station as to be capable (when any necessary buildings works and machinery have been provided) of supplying the maintainable yield :
- (4) Subject to the provisions of this section the Bedfordshire Council shall be entitled from time to time to give to the Board six months' notice in writing (or such longer notice as may be reasonably necessary) requiring the Board to reserve for them for use within the county of Bedford such daily quantity of water as may be specified in such notice :

Provided that a notice in writing under this subsection requiring the Board to reserve for the Bedfordshire Council any further or additional daily quantity of water shall not be given—

(a) unless a supply of water from the Board is likely to be required for use within the county of Bedford within a reasonable period after the giving of such notice; or

(b) within a period of one year next following the date upon which any previous notice thereunder has been given by the Bedfordshire Council :

Provided also that the aggregate daily quantity of water to which the Bedfordshire

Council shall be entitled in pursuance of any notice or notices given to the Board under this subsection shall not exceed one-half of the maintainable yield or the amount by which the maintainable yield exceeds five hundred thousand gallons (whichever be the less):

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- (5) From the date upon which the Battlesden pumping station is first brought into operation for the purposes of supply and so long as the Board continue to take water by means of that pumping station the Board shall (subject as is in this section provided) supply to the Bedfordshire Council from the Battlesden pumping station such daily quantity of water (if any) as the Bedfordshire Council may from time to time require but not exceeding the reserved water and the Bedfordshire Council shall make to the Board the payments hereinafter prescribed:
- (6) The Board shall not incur any liability in respect of a failure to supply water under this section if the failure is due to frost unusual drought or other unavoidable cause or accident:
- (7) The Bedfordshire Council shall pay to the Board in each year as from the date of the commencement of the supply of water by the Board to the Bedfordshire Council under this section—

(i) such proportion of a sum equal to four per centum upon the aggregate sum expended on capital account on the Battlesden pumping station (excluding the sum expended in sinking the wells or boreholes) up to the end of the year for which such payment is made as the reserved water shall bear to the maintainable yield;

(ii) such proportion of the cost in the year for which such payment is made of working maintaining and managing the Battlesden pumping station (including all rates and taxes payable in respect thereof) as the quantity of water supplied to the Bedfordshire Council during that year shall

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bear to the total quantity of water abstracted by the Board during that year from the Battlesden pumping station :

(8) Either the Board or the Bedfordshire Council may within three months after the expiration of ten years from the date of the first reservation notice and within three months after the expiration of every subsequent period of ten years and after giving notice in writing of such application to the Bedfordshire Council or the Board (as the case may be) apply to the Minister to increase or reduce the rate of four per centum provided for under subsection (7) of this section and upon such application the Minister may after hearing the Board and the Bedfordshire Council make an order substituting for the said rate of four per centum such rate per centum as having regard to all the circumstances (including the then value of money) he thinks reasonable and after any such order the said subsection (7) shall be read and have effect as if the rate mentioned in such order were provided for thereunder in lieu of four per centum :

(9) (a) As soon as practicable after the thirty-first day of March the thirtieth day of June the thirtieth day of September and the thirty-first day of December in each year the Board shall prepare and send to the Bedfordshire Council an account showing the amount due from the Bedfordshire Council under subsections (7) and (15) of this section in respect of the preceding three months and such accounts shall be based until the termination of the first year in which water is supplied under this section to the Bedfordshire Council on estimates prepared by the Board and thereafter each such account shall be based upon approximate figures prepared by the Board provisionally and shall be subject to adjustment when the final accounts for the year are prepared as hereinafter mentioned;

(b) The Bedfordshire Council shall pay to the Board the amount due from them in respect

of the three months to which the account relates within the period of twenty-one days after the receipt of the account which amount shall be deemed to be a debt due from the Bedfordshire Council to the Board and if unpaid within the said period shall bear interest at the rate of five per centum per annum from the expiration of that period until payment;

(c) As soon as practicable after the end of each year ending on the thirty-first day of March final accounts in respect of that year shall be prepared by the Board and delivered to the Bedfordshire Council showing (i) the actual amount payable by the Bedfordshire Council under this section in respect of the year and (ii) the balance due from or to the Bedfordshire Council which balance shall be deemed to be a debt due by the Bedfordshire Council to the Board or by the Board to the Bedfordshire Council (as the case may require) and if unpaid within the period of twenty-one days after the receipt of the final account shall bear interest at the rate of five per centum per annum from the expiration of the said period until payment :

(10) The point at which water shall be supplied to the Bedfordshire Council under this section shall be such point at the Battlesden pumping station as shall be agreed between the Board and the Bedfordshire Council or as failing agreement shall be determined by arbitration and any lines of pipes or other works required for enabling the Bedfordshire Council to take a supply of water at that point shall be laid by the Bedfordshire Council but all works for connecting such lines of pipes or other works of the Bedfordshire Council with the works of the Board at such point shall be executed by the Board and the cost of so doing shall be repaid by the Bedfordshire Council to the Board :

(11) For the maintenance testing cleaning altering extending or repairing of their waterworks the

A.D. 1937.

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PART IV.
—cont.

A.D. 1937.

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PART IV.
—cont.

Board may after giving (except in emergency) not less than fourteen days' notice to the Bedfordshire Council discontinue temporarily the supply of water to the Bedfordshire Council for such a period or periods as may be reasonably requisite. Provided that the Board shall if and so far as is reasonably practicable (and if so required by the Bedfordshire Council) make good to the Bedfordshire Council the aggregate quantity of water of which the Bedfordshire Council were deprived by such discontinuance and such making good shall be effected at such times and in such manner as may be agreed between the Board and the Bedfordshire Council or failing agreement determined by arbitration :

- (12) A supply of water under this section to the Bedfordshire Council shall be given and received in a regular flow for a period of not less than sixteen hours in any day (subject to any adjustment which may be necessary in order to give effect to the proviso to the immediately preceding subsection of this section) and at a pressure during the hours of pumping of not less than is equivalent to 675 feet above Ordnance datum measured on the rising main at the Battlesden pumping station and the works of the Bedfordshire Council shall be so constructed and maintained that the water shall at all times be capable of flowing from the works of the Board to the works of the Bedfordshire Council under the said pressure and so as not to interfere with the free and unrestricted flow of water in the works of the Board. Provided that any variation in the flow of the supply due to variations in the demand of consumers of the Bedfordshire Council shall not prevent the supply being deemed to be given and received in a regular flow for the purposes of this subsection but the quantity of water taken by the Bedfordshire Council in any week (exclusive of any surplus water as hereinafter defined) shall not exceed seven times the reserved water :

(13) (a) The water supplied to the Bedfordshire Council under this section shall be measured by a meter to be fixed on the pipes of the Bedfordshire Council as near as practicable to the point at which the water is delivered to the Bedfordshire Council;

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PART IV.
—cont.

(b) The meter shall be provided and fixed by the Board in a building or chamber to be erected by them at the expense of the Bedfordshire Council on the site of the Battlesden pumping station;

(c) The building or chamber shall be under the sole control of the Board and be maintained by them;

(d) The meter shall also be under the sole control of the Board and be maintained by them but the Bedfordshire Council shall at all reasonable times be at liberty by themselves or their engineer to inspect the meter (on giving to the official of the Board having charge of the meter sufficient notice to enable him to have it opened for inspection) and to require its accuracy to be tested;

(e) The Bedfordshire Council shall repay to the Board on demand all costs incurred by the Board in erecting the said building or chamber and in providing and fixing the meter and of and incident to any testing of the meter;

(f) The Bedfordshire Council shall also pay to the Board the reasonable costs incurred by the Board in maintaining and repairing the said building or chamber and in maintaining and keeping in proper condition and working order and when necessary renewing the said meter and subsidiary apparatus. All payments under this paragraph shall be made quarterly on or before the same dates as the payments under subsection (9) of this section are required to be made:

(14) (a) The register of any meter or meters provided under this section shall be prima facie evidence of the quantity of water supplied by the Board;

A.D. 1937.

PART IV.

—cont.

(b) If any such meter at any time registers incorrectly the Board on becoming aware thereof shall within a reasonable time repair it or replace it with a correct meter. If the meter is removed for any reason the Board shall refix or replace it within a reasonable time;

(c) If any meter shall have been removed or shall have been proved to have registered incorrectly during any period the quantity of water supplied during that period shall be determined according to the best estimate reasonably possible having regard to all the circumstances :

- (15) (a) Within one month from the date upon which the Battlesden pumping station is first brought into operation for the purposes of supply and (if required in writing by the Bedfordshire Council so to do) at the expiration of each period of three years thereafter the Board shall estimate their requirements of water from that pumping station for use within the limits of supply and shall give notice in writing to the Bedfordshire Council specifying what proportion (if any) of the quantity of five hundred thousand gallons of water referred to in subsection (4) of this section will not be required by the Board within the said limits (the proportion so specified being in this subsection referred to as "surplus water");

(b) Within twenty-one days after the receipt of any such notice the Bedfordshire Council shall give notice in writing to the Board stating whether they require the Board to supply to them the whole or any part of the surplus water;

(c) Notwithstanding the provisions of subsections (4) and (5) of this section the Board shall on receipt of any such notice in writing from the Bedfordshire Council supply to the Bedfordshire Council the whole or such part of the surplus water as may be specified in such last-mentioned notice on the same terms as apply with respect to reserved water and such supply shall be in addition to the quantity

available to the Bedfordshire Council in respect of any reservation notice; A.D. 1937.

(d) The Board may at any time by three years' notice in writing to the Bedfordshire Council cease to supply to the Bedfordshire Council the whole or any part of the surplus water which may be required by the Board for the purposes of supply within the limits of supply:

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PART IV.
—cont.

(16) Any water supplied to the Bedfordshire Council under the provisions of this section may be supplied by that council to any local authority body company or person for use within the county of Bedford on such terms and conditions as may be agreed between the Bedfordshire Council and such local authority body company or person (as the case may be):

(17) Any dispute under this section between the Board and the Bedfordshire Council shall be referred to arbitration.

78.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Board may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Board and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus.

Meters in streets to measure water or detect waste.

(2) Provided that—

(a) the Board shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878;

(b) nothing in this section shall extend to or authorise any interference with any works or apparatus of the Central Electricity Board except in accordance with the provisions

A.D. 1937.

PART IV.
—cont.

of section 15 of the Electric Lighting Act 1882;

- (c) the Board shall not exercise the powers of this section with reference to any streets sewers gas air or water pipes or any electric lines wires or apparatus belonging to or maintainable by any of the transport undertakers without the consent of such transport undertakers (which consent shall not be unreasonably withheld) or so as unreasonably to interfere with or render less convenient the access to or exit from any station depot garage or other premises of any of the transport undertakers Any question arising as to whether such consent is in any case unreasonably withheld shall be determined by arbitration.

PART V.

SUPPLY OF WATER.

Commence-
ment of
this Part
of Act.

79. This Part of this Act and the other provisions of this Act relating to the supply of water shall come into operation on the appointed day.

Limits of
supply.

80. The limits of supply of the Board shall be—

- (i) The Aylesbury district except so much thereof as is comprised within the limits of supply of the Chiltern Hills Spring Water Company at the date of this Act;
- (ii) The Buckingham district;
- (iii) The Wing district; and
- (iv) The Winslow district :

Provided that—

- (a) The Board shall not except by agreement with the Great Brickhill Parish Council supply water within the parish of Great Brickhill so long as water is supplied in or for use in that parish by the Bletchley Urban District Council in pursuance of the agreement dated the fourteenth day of February one thousand nine hundred and eleven and made between the Fenny Stratford Urban

District Council (the predecessors of the Bletchley Urban District Council) of the one part and the Newport Pagnell Rural District Council (the predecessors in relation to the said parish of Great Brickhill of the Wing Council) of the other part as amended by the agreement dated the twenty-third day of December one thousand nine hundred and twenty-five and made between the Bletchley Urban District Council of the one part and the Newport Pagnell Rural District Council of the other part;

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PART V.
—cont.

- (b) Nothing in this Act contained shall take away abridge lessen alter or in any manner affect or prejudice the rights and privileges of the inhabitants of Great Brickhill and of the heirs assigns and successors in title of Sir Philip Henry Pauncefort Duncombe owner or owners for the time being of the mansion house and premises known as Brickhill Manor under a conveyance dated the eleventh day of March one thousand eight hundred and ninety-two and made between the said Sir Philip Henry Pauncefort Duncombe of the first part George Augustus Duncombe and Arthur Flower of the second part and the Guardians of the Poor of the Newport Pagnell Union of the third part and under the said agreements dated the fourteenth day of February one thousand nine hundred and eleven and the twenty-third day of December one thousand nine hundred and twenty-five respectively whether the parish of Great Brickhill is supplied with water by the Bletchley Urban District Council or by the Board or otherwise; and
- (c) The Board shall not otherwise than with the consent in writing of the Wing Council commence to supply water in the parish of Wing so long as the Wing Council are affording in that parish by means of the existing undertaking therein a supply of water which is not less adequate to consumers than the supply which is being afforded by

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PART V.
—*cont.*

them therein at the date of this Act. Provided further that for the purpose of affording such a supply of water as aforesaid in the parish of Wing the Wing Council shall not enlarge or extend the source of supply or the works by means of which water is abstracted from that source but nothing in this proviso shall prevent the Wing Council from repairing or renewing such works so long as they do not borrow money for the purpose of so doing.

Board to
have
powers of
local
authority
for supply
of water.

81.—(1) Subject to the provisions of this Act the Board shall have and enjoy and may exercise all the powers rights and authorities of a local authority under the Public Health Act 1936 and any Acts amending the same with respect to the supply of water and the acquisition of land (but subject to the restrictions and obligations imposed by such Acts respectively in regard to such powers rights and authorities) and for that purpose the limits of supply shall be deemed to be the district of the Board :

Provided that nothing in the said Acts contained shall authorise the Board to charge for the supply of water any rates other than the rates which they are by this Act authorised to charge.

(2) Section 121 of the Public Health Act 1936 shall apply in relation to the undertaking as if the Board were a local authority within the meaning of that section.

Amend-
ment of
section 35
of Water-
works
Clauses
Act 1847.
Limit of
pressure.

82. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Board be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-eighth part of such expense.

83. The water supplied by the Board need not at any time be delivered at a pressure greater than that to be afforded by gravitation from the reservoir from which the supply is taken.

Rates for
domestic
supply.

84.—(1) Subject as hereinafter provided the Board shall at the request of the owner or occupier of any dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate per annum

not exceeding twelve and a half per centum on the net annual value of such dwelling-house :

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Provided that—

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PART V.
—cont.

- (a) The Board shall not be required to supply any such premises with water for a less sum than thirteen shillings per annum;
- (b) From the appointed day and until the Board commence to supply water which is derived from the works authorised by Part IV of this Act the rates which the Board may charge in respect of a supply of water for domestic purposes from any of the existing works shall not exceed such rates as may be agreed between the Board and the local authority of the district in which the supply is to be afforded or failing such agreement as may be determined by the Minister;
- (c) During the respective periods from the appointed day mentioned in the fourth column of the Third Schedule to this Act (but subject to the provisions of the section of this Act of which the marginal note is "Revision of water rates and charges") the rate per annum on such net annual value in respect of a supply of water for domestic purposes to be charged by the Board in the respective parishes mentioned in the second column of that schedule shall not exceed the rate mentioned in respect of those parishes respectively in the third column thereof;
- (d) The operation of proviso (c) to this subsection may on the application of the Board or of any constituent authority be extended in whole or in part by the Minister in relation to any parish or parishes beyond the period or periods mentioned in the fourth column of the said schedule with reference to such parish or parishes if (after an opportunity of making representations in regard to such application has been afforded to all parties interested) the Minister is satisfied that such extension is reasonable having regard to the cost reliability and efficiency of the supply

A.D. 1937.

PART V.

—cont.

of water in that parish or those parishes immediately before the appointed day and to all other relevant circumstances;

- (e) If and when the Board shall commence to supply water within the parish of Great Brickhill in the Wing district the Minister may if he think fit on the application of the Board or of the Great Brickhill Parish Council by order provide that for such period as may be specified in the order the rate per annum on such net annual value in regard to the supply of water for domestic purposes to be charged by the Board in that parish shall not exceed such rate as may be prescribed by the Minister in such order.

(2) The net annual value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the period for which the rate accrues or by any alterations in or additions to such list made during such period:

Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) (a) In addition to the foregoing charges the Board may charge in respect of—

- (i) every fixed bath beyond the first (for which no additional charge shall be made unless the same have a capacity in excess of fifty gallons) not having a capacity in excess of fifty gallons; and

- (ii) every first fixed bath having a capacity in excess of fifty gallons;

a sum not exceeding ten shillings per annum and in respect of every other bath in excess of fifty gallons such sum as the Board may think fit.

(b) For the purposes of this subsection the capacity of a bath shall be measured to the centre line of the overflow pipe or in such other manner as the Minister may by regulations prescribe.

85. Where two or more houses or buildings or parts of one or more houses or buildings connected by any internal means of communication or by any bridge subway yard or passage not being a public highway are in the occupation of one and the same company body firm or person they shall be deemed for the purposes of determining the amount of the water rate chargeable by the Board in respect of any supply of water for domestic purposes furnished by the Board to such houses or buildings or parts thereof (being in such single occupation as aforesaid) to be one tenement having a net annual value (within the meaning of the section of this Act of which the marginal note is "Rates for domestic supply") equal to the aggregate net annual values of the separate houses or buildings or parts of houses or buildings so occupied.

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PART V.

—cont.

As to net annual value of two or more houses in one occupation.

86.—(1) Where a person who takes a supply of water for domestic purposes desires to use the water for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Board may if a hose-pipe or other similar apparatus is used charge (except where the water so used is taken by meter) such sum not exceeding twenty-five shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first.

Charges for animals and vehicles.

(2) Any sums chargeable under this section shall be in addition to the rates authorised by this Act for the supply of water for domestic purposes and shall be recoverable in all respects with and in the same manner as the said rates.

(3) Where water supplied by the Board to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Board may if they think fit require that all water so used by means of any such hose-pipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

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PART V.
—cont.

Charges for
supplies for
refrigerat-
ing ap-
paratus &c.

87.—(1) Where a person who takes a supply of water for domestic purposes from the Board otherwise than by measure desires to use any of the water so supplied for—

- (a) a water-cooled refrigerating apparatus; or
- (b) any apparatus depending while in use upon a supply of continuously running water; or
- (c) any apparatus used for softening water which requires water for cleaning regenerating motive power or similar purposes;

the Board may if they think fit require that all water so used shall—

- (i) be taken by measure and paid for accordingly and in that event the minimum quarterly charge for the water shall be ten shillings; or
- (ii) be paid for at such rates as may be agreed between such person and the Board.

(2) No charge shall be made under this section in respect of an apparatus used within the premises for which the supply of water is taken for softening water if one such apparatus only is used and the water softened thereby can be drawn off into a receptacle at one point only and is used solely for purposes for which the domestic rate is paid.

Rates pay-
able by
owners of
small
houses.

88.—(1) Where any premises supplied with water are let to monthly or weekly tenants or to tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Board so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner.

(2) Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Supply to
houses
partly
used for
trade &c.

89.—(1) The Board shall not be bound to supply with water otherwise than by meter—

- (a) any building used by an occupier as a dwelling-house whereof any part is used by the same

- occupier for any trade business or manufacturing purpose for which water is required;
- (b) any hospital (whether public or private) or sanatorium;
 - (c) any club hotel assembly hall restaurant public-house inn or common lodging-house;
 - (d) any boarding-house lodging-house or public institution capable of accommodating at least twelve persons including the persons usually resident therein;
 - (e) any school; or
 - (f) any swimming bath.

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PART V.
—cont.

(2) Where a supply of water to a farmhouse is used for farming purposes the Board may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Board to refuse a supply of water for domestic purposes to a farmhouse at the rates authorised by or in pursuance of this Act.

(3) The amount to be paid under the provisions of this section exclusive of meter rent shall not in any one quarter of a year be less than the sum which would have been payable in respect of such premises had the supply thereto been furnished at the rate for the time being payable for water supplied for domestic purposes.

90.—(1) Notwithstanding anything in any Act relating to the Board a person shall not be entitled to demand or continue to receive from the Board a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Board to take a supply of water by meter and to pay to the Board such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Board by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum

Special
terms for
supplies to
caravans
shacks &c.

A.D. 1937. demand of such person for his caravan shack hut tent
or structure.

PART V.
—cont.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

Supply by
meter.

91. The Board may supply water for other than domestic purposes on such terms and conditions as they think fit and may supply water by meter either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates :

Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
water
supplied
by meter.

92. The price to be charged by the Board for a supply of water by meter shall not exceed two shillings and sixpence per thousand gallons Provided that—

- (a) except as by this Act otherwise expressly provided the Board shall be entitled to charge a minimum sum of fifteen shillings in any quarter of the year for water supplied by meter ;
- (b) during the respective periods mentioned in the fourth column of the Third Schedule to this Act (but subject to the provisions of the section of this Act of which the marginal note is " Revision of water rates and charges ") the price to be so charged shall not exceed one shilling and sixpence per thousand gallons in the respective parishes mentioned in the second column of that schedule.

Revision of
water rates
and charges.

93.—(1) The Minister may if he thinks fit from time to time on the application of the Board or of any constituent authority by order vary either by way of increase or decrease the rates and charges for the supply of water which the Board are by this Act authorised to charge :

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xcv.]
1 GEO. 6.]

Provided that the rates and charges prescribed in any such order shall be of such amounts as in the opinion of the Minister will provide a reasonable sum as a contribution towards a reserve fund in respect of the undertaking so long as such fund does not amount to the maximum authorised by the section of this Act of which the marginal note is "Application of moneys received by Board."

A.D. 1937.

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PART V.
—cont.

(2) Any order made by the Minister in pursuance of the foregoing provisions of this section may provide for the alteration of the basis of the rates and charges for the supply of water which the Board are for the time being authorised to charge and may fix the date upon which any such variation as is referred to in subsection (1) of this section or any such alteration as is referred to in this subsection shall come into force.

94. The Board may require that any dwelling-house the supply of water to which is commenced after the passing of this Act and which is situate on land at a higher level than fifty feet below the top water level of the service reservoir from which a supply of water is furnished or to be furnished by them to such dwelling-house shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply to such dwelling-house for a period of twenty-four hours and the Board shall not be required to supply any such dwelling-house until the same is provided with a cistern or cisterns in conformity with the requirements of this section.

Cisterns to be provided for high level supplies.

95. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 the engineer of the Board or any officer of the Board duly authorised by him in writing may at all reasonable times between the hours of seven and nine in the morning and also between the hour of four in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Board in order to examine if there be any waste or misuse of such water and if any person hinder the said engineer or such authorised officer from entering either under the said section 57 or under this section or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds Provided that no

Extension of power to inspect premises.

A.D. 1937.

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PART V.
—cont.Main-
tenance of
common
pipe.

person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section.

96. When several houses or other premises or parts of houses or other premises in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or other premises or parts of houses or other premises the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Board in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Board or other officer duly authorised in that behalf by the Board.

Separate
communi-
cation
pipes may
be required.

97.—(1) The Board shall not be bound to supply with water more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water.

(2) If the owner of any house or part of a house occupied as a separate tenement which is supplied with water by the Board when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate pipe from the main into such house or part of a house the Board may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing.

Power to
Board to
repair com-
munication
pipes.

98. If in the opinion of the Board any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Board are not under obligation to maintain it shall be lawful for the Board to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expense incurred by the Board for the purposes of ascertaining the injury or defect and executing the repairs (including

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xciv.]
1 GEO. 6.]

the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Board in like manner as the water rates in respect of the premises are recoverable :

A.D. 1937.

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PART V.
—cont.

Provided that (except in case of emergency) the Board shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises (and if the water rates in respect of the house or premises are payable by the owner thereof to such owner) not less than twenty-four hours' previous notice of their intention so to enter.

99.—(1) In the case of all premises to be connected after the passing of this Act with the mains of the Board the Board may in cases where the communication pipes are laid by the person requiring a supply of water to any premises or by the Board at the request of such person require such person at the time when the pipes are laid to insert or to have inserted and thereafter to maintain a stop-cock (which expression where used in this section shall include the necessary covers or boxes for giving access and protection thereto) in the communication or service pipe from the said premises in some position (to be reasonably approved by the road authority) in the footway of the street in which such pipe is laid or if there be no footway in a position as near as reasonably practicable to the premises supplied and if such person fails to comply with such requirement the Board may insert and maintain a stop-cock in such communication or service pipe and recover the reasonable expenses incurred by them in so doing from such person as a civil debt.

Stop-cocks
&c. to be
fitted in
communi-
cation
pipes.

(2) For the purpose of complying with any obligation under this section to insert or to maintain a stop-cock and for the purpose of maintaining any existing stop-cock in a communication or service pipe from any premises within the limits of supply the person liable shall have the like power to open the ground as is conferred upon him by and subject to the conditions of subsection (1) of section 121 of the Public Health Act 1936 in relation to communication pipes.

(3) The Board may by agreement with any person liable to insert or to maintain any stop-cock and for

A.D. 1937. that purpose authorised to open or break up any street
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PART V. within the limits of supply execute such works on behalf
—cont. of such person and any expenses incurred by the Board in
so doing shall be repaid by the person with whom the
agreement is made and shall be recoverable summarily
as a civil debt.

Power to 100. The Board may sell meters and any fittings
sell meters. connected therewith upon and subject to such terms
(pecuniary or otherwise) and conditions as they think
fit.

Injuring 101.—(1) Every person who wilfully fraudulently
meters &c. or by culpable negligence injures or suffers to be injured
any pipe meter or other instrument for measuring
water or any fitting belonging to the Board or who
fraudulently alters the index to any meter or other
instrument for measuring water or prevents any meter
or other instrument for measuring water from duly
registering the quantity of water supplied or fraudulently
abstracts consumes or uses water of the Board shall
(without prejudice to any other right or remedy for the
protection of the Board) be liable to a penalty not exceed-
ing five pounds and the Board may in addition thereto
recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully
fraudulently or by culpable negligence injured or suffered
to be injured any pipe meter instrument or fitting belong-
ing to the Board or has fraudulently altered the index
to any meter or other instrument for measuring water
or prevented the same from duly registering the quantity
of water supplied or has fraudulently abstracted con-
sumed or used water of the Board the Board may enter
upon the premises occupied by the offender and repair
such injury and do all such works matters and things as
may be necessary for insuring the proper registering by
such meter or instrument of the quantity of water supplied
by means thereof and the expense of such repair and of
all such works matters and things shall be repaid to the
Board by the person so offending and may be recovered
by them as water rates are recoverable.

(3) The existence of artificial means for causing
such injury alteration or prevention or for abstracting
consuming or using water of the Board when such pipe

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xciv.]
1 GEO. 6.]

meter instrument or fitting is under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use (as the case may be) has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fitting.

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PART V.
—cont.

102. Before any person connects or disconnects any meter by means of which any of the water of the Board is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Board of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Board and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to
Board of
connecting
or dis-
connecting
meters.

103. A notice to the Board from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Board.

Notice of
discon-
tinuance.

104.—(1) The Board may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter (but shall not manufacture) any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and execute all work necessary or proper in that behalf and the reasonable charges of the Board in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
supply
water
fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed

A.D. 1937. or made thereon sufficiently indicating the Board as
the actual owners thereof.

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PART V.
—cont.

(3) Subject to the proviso to subsection (2) of this section all fittings let by the Board on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any premises at all times continue to be the property of and removable by the Board. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) Provided as follows :—

(a) The Board shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of money so borrowed);

(b) When a demand note delivered by the Board to a consumer includes a sum charged by the Board in respect of providing such fittings or the fixing repairing or removal thereof such sum shall be clearly stated in such demand note;

(c) The total sums expended and received by the Board in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the undertaking for such year.

As to
recovery
summarily
of sums due
for fittings.

105. If the Board commence proceedings for the summary recovery of a sum due for the supply of water any other sum due or payable to the Board in respect of the sale or hire of any fittings supplied by them for or in connection with the supply of water or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily provided the amount due or payable in respect thereof does not exceed twenty pounds.

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xcv.]
1 GEO. 6.]

106. Any person being the owner or occupier of any house or premises or part of a house or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Board who shall without the authority of the Board turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Board and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

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PART V.

—cont.

Penalty for interfering with valves &c.

107. Every person who shall wilfully (without the consent of the Board) or negligently close or shut off any valve cock or other work or apparatus belonging to the Board whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Board) be liable on conviction to a penalty not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe.

Penalty for closing valves and apparatus.

108.—(1) The Board by their agents or workmen after forty-eight hours' notice in writing under the hand of the engineer of the Board or some other officer of the Board to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Board is laid or fixed and through or in which the supply of water is from any cause other than the default of the Board discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Power to remove meters and fittings.

(2) If any person hinders any such agent or workman from entering or effecting such removal he shall for every such offence be liable on conviction to a penalty not exceeding five pounds.

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PART V.

—cont.

Purchase
of water in
bulk.

109. The Board may enter into and carry into effect agreements with any local authority body company or person supplying water under parliamentary authority and with the approval of the Minister in the case of any water intended for domestic consumption with any other local authority body company or person for the purchase of water in bulk by the Board for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Board for the purposes of the undertaking.

Contracts
for supply-
ing water
in bulk.

110.—(1) The Board may enter into and carry into effect agreements with any local authority body company or person for the supply of water beyond the limits of supply to any such authority body company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon :

Provided that such supply shall not be given except with the consent of any authority body company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water within the limits of supply.

(2) Nothing in this section shall authorise the Board to supply in bulk water derived from any source situate in the area included within the limits shown on the “deposited map” as such map is defined by section 119 of the Thames Conservancy Act 1932 outside or for consumption or use outside that area without the consent of the conservators of the river Thames but such consent shall not be unreasonably withheld.

22 & 23
Geo. 5.
c. xxxvii.

PART VI.

FINANCE.

Power to
borrow.

111. The Board may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed

within such periods as the Board may determine not exceeding those respectively mentioned in the third column of the said table (namely) :—

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PART VI.
—cont.

1.	2.	3.
Purpose.	Amount.	Period for repayment calculated (except where otherwise stated) from the date or dates of borrowing.
(a) The purchase of lands and easements.	£ 3,000	Sixty years.
(b) The construction of the works authorised by this Act and the payment of any sums payable to the county council in pursuance of the section of this Act of which the marginal note is "Payments by Board to county council."	137,500	Forty years.
(c) Water mains and other waterworks purposes.	241,500	Forty years.
(d) Working capital - - -	2,000	Ten years.
(e) The repayment to the county council of the costs charges and expenses of this Act.	The sum requisite.	Five years from the appointed day.

112.—(1) The provisions of Part IX of the Act of 1933 and of the regulations made thereunder so far as they are not inconsistent with the provisions of this Act shall extend and apply to the Board and to money borrowed by the Board as if—

Application of Act of 1933 to borrowing of money by Board.

- (a) the Board were a local authority within the meaning of the Act of 1933;
- (b) the money so borrowed were borrowed under the said Part IX; and
- (c) the revenues of the Board were the general rate fund or the revenues of the local authority;

and subject to any other modifications which may be necessary to adapt the said Part IX and regulations for the purpose of this section :

Provided that it shall not be obligatory on the Board to commence the repayment by sinking fund or

A.D. 1937.
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PART VI.
—*cont.*

otherwise of any moneys borrowed for the purposes (a) and (b) mentioned in the section of this Act of which the marginal note is "Power to borrow" until the thirty-first day of March next after the completion of the works authorised by this Act or until the expiration of five years from the passing of this Act whichever shall first happen.

(2) The periods mentioned in the third column of the table contained in the said section of this Act of which the marginal note is "Power to borrow" shall as respects any money borrowed under that section respectively be the fixed period for the purposes of the said Part IX.

As to
securities
of Board.

113. For the purposes of the definition of "statutory securities" in section 218 of the Act of 1933 any securities created by the Board shall be deemed to be securities created by a local authority.

Power for
constituent
authorities
to lend
money to
Board.

114.—(1) Without prejudice to the operation of the section of this Act of which the marginal note is "As to securities of Board" any constituent authority may with the consent of the Minister lend to the Board any sum or sums which the Board are empowered to borrow on such terms and conditions and in such form as may be agreed between the Board and the constituent authority.

(2) Any constituent authority may with the consent of the Minister from time to time independently of any other borrowing power borrow at interest such sums as may be requisite for the purpose of providing any sum or sums which such constituent authority may lend to the Board under the provisions of this section.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act.

Use of
moneys
forming
part of
sinking and
other
funds.

115. Notwithstanding anything contained in this or any other Act the Board may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any sinking fund or other fund accumulated for the redemption of debt or as a

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xcv.]
1 GEO. 6.]

reserve renewals depreciation contingent insurance or other similar fund (in this section referred to as "the lending fund") subject to the following conditions:—

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PART VI.

—cont.

- (1) The moneys so used shall be repaid to the lending fund within the period and by the methods within and by which a loan raised under the statutory borrowing power would be repayable:

Provided that the Board shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding (as the case may be) as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power:

- (2) In the accounts of the Board an amount equal to interest calculated at such a rate per centum per annum as may be determined by the Board to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power on any moneys so used and for the time being not repaid shall be credited to the lending fund and debited to the purpose with reference to which the moneys are so used:
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

116.—(1) Notwithstanding anything contained in any Act or Order the Board may (if they think fit) establish a fund to be called "the consolidated loans fund" to which shall be paid—

Consolidated loans fund.

- (a) all moneys borrowed by the Board whether by issue of mortgages stock or other security together with any moneys borrowed without

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PART VI.

—cont.

security in connection with the exercise of any statutory borrowing power;

- (b) all moneys of a capital nature received by the Board whether from the sale of capital assets or otherwise except such as are applied by the Board with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Board to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Board as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Board—

- (a) in the redemption of stock or any other securities issued by the Board the purchase of stock for extinction or the repayment of any moneys borrowed by the Board; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Board:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xciv.]
1 GEO. 6.]

that fund and separate accounts shall be kept of these sums and their application. A.D. 1937.

(4) The Board may pay into the consolidated loans fund any moneys forming part of any reserve renewals depreciation contingent insurance superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Board within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

PART VI.
—cont.

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Board to be equal as nearly as may be to the average rate of interest payable by the Board on their current borrowings.

(5) Nothing in this section shall apply to moneys borrowed from the Public Works Loan Commissioners.

(6) The powers conferred by this section shall not be put into operation by the Board except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may be altered amended or revoked by a scheme made in like manner as the original scheme.

117.—(1) Before the commencement of any financial year the Board shall make or cause to be made estimates of the probable revenue and expenditure (other than capital expenditure) which shall be received or incurred by them during the year and if such estimates show that there will be a deficiency in the net revenue of the Board in the year the Board are hereby authorised and required in every case forthwith to apportion the sum required to meet such deficiency

Apportionment of deficiency in revenue of Board.

A.D. 1937. whether for satisfying past or future liabilities in manner
and in the following order (that is to say) :—

PART VI.
—cont.

- (a) First to the extent of an amount equivalent to four times the product of a penny rate upon the constituent authorities other than the county council in proportion to the respective total rateable values of property comprised within the Aylesbury district the Buckingham district the Wing district and the Winslow district;
- (b) Secondly to the extent of an amount equivalent to sixteen times the product of a penny rate equally upon the county council on the one hand and the constituent authorities other than the county council on the other hand such constituent authorities to pay the share of the moiety of such amount so attributable to them in proportion to the respective total rateable values above mentioned;
- (c) Thirdly to the extent of any remaining deficiency from the county council.

(2) The Board shall before the commencement of each financial half year issue to each of the constituent authorities a precept for a sum equal to one half of the amount apportioned to that authority in pursuance of this section and each of the constituent authorities shall within two months after the commencement of the half year (or by instalments of such amounts and payable within such times as may be specified in the precept issued to them) pay to the Board the sum stated in the precept.

(3) Such sums shall be paid by the constituent authorities as follows :—

- (a) By the county council out of their county fund as general county expenses;
- (b) By the Buckingham Council the Wing Council and the Winslow Council out of the general rate fund and general rate of the Buckingham district the Wing district and the Winslow district respectively;
- (c) By the Aylesbury Council either by means of a special rate levied on the parishes of the

Aylesbury district which are comprised within the limits of supply or by means of contributions from the general rate fund and the general rate of the Aylesbury district under section 190 of the Act of 1933 or partly by one method and partly by the other as and to the extent to which the Aylesbury Council shall by resolution from time to time determine.

A.D. 1937.

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PART VI.
—cont.

(4) If any constituent authority fails to pay any amount so apportioned or as the case may be any instalment of such amount as may have been specified in any such precept within the time in which the same was payable the same shall be a debt due to the Board from such constituent authority and shall bear interest till payment at the rate of five per centum per annum and the Board may in addition to all other remedies proceed for recovery thereof in either of the modes following (that is to say):—

(a) The Board may sue the defaulting authority for the amount unpaid in any court of competent jurisdiction;

(b) The Board may by precept empower some officer of the Board to raise by means of a rate to be assessed upon the like property and to be made levied and collected in like manner and with the like powers and authorities as the rate out of which the amount in arrear ought to have been paid by the defaulting authority such sum (to be specified in the precept) as in the opinion of the Board will be sufficient to pay the amount in arrear and interest and all expenses incurred in consequence of the non-payment thereof and the expenses of levying and collecting such rate and any officer of the Board so empowered shall have the like powers of assessing making levying and collecting rates and of requiring officers of the defaulting authority to account as the defaulting authority would have under any Act or otherwise and the officer of the Board so empowered after paying all money payable under the precept shall pay any residue of the money received by him (the amount to be ascertained by the Board) to the defaulting authority.

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PART VI.
—cont.

(5) Any receiver appointed under the Act of 1933 upon the application of the mortgagees of the Board shall be entitled to receive the amounts so apportioned by the Board between the constituent authorities and in case the Board at any time neglect or refuse to make such apportionment or to recover the same or any part thereof the receiver shall in every such case be entitled to make such apportionment and to exercise all or any of the powers by this section conferred on the Board for recovering the amounts so apportioned.

(6) If in any financial year any sum is apportioned upon the county council in pursuance of paragraph (c) of subsection (1) of this section the Board shall not during the next following financial year without the consent in writing of a majority of the representatives of the county council on the Board make any single payment (exceeding fifty pounds) or incur any single liability (exceeding a like amount) other than a payment or liability made or incurred in pursuance of any statutory obligation of the Board.

24 & 25
Geo. 5. c. 7.

(7) Any contribution or contributions made to the Board by the Minister in pursuance of the Rural Water Supplies Act 1934 towards the expenses incurred or to be incurred by the Board under this Act shall (in any year in which there is a deficiency in the net revenue of the Board) be credited to the Aylesbury Council the Buckingham Council the Wing Council and the Winslow Council in proportion to the respective rateable values of the Aylesbury district the Buckingham district the Wing district and the Winslow district up to but not exceeding the proportion of such deficiency falling to be borne by those councils.

Application
of moneys
received by
Board.

118.—(1) (a) All moneys received by the Board in respect of the undertaking except (a) borrowed money (b) money arising from the disposal of lands acquired for the purposes of this Act and (c) other capital money received by them in respect of the undertaking shall be applied by them in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking including all costs expenses penalties and damages incurred or payable

by the Board consequent upon any proceedings by or against them their officers clerks or servants in relation to the undertaking;

A.D. 1937.

PART VI.

—cont.

Secondly In payment of the sums referred to in the section of this Act of which the marginal note is "Consideration for transfer of existing undertakings";

Thirdly In payment of the interest on moneys borrowed by the Board under any statutory borrowing power or used for those purposes in pursuance of the sections of this Act of which the marginal notes are "Use of moneys forming part of sinking and other funds" and "Consolidated loans fund" respectively;

Fourthly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Board under any statutory borrowing power;

Fifthly In payment of all other expenses of executing this Act not being expenses properly chargeable to capital;

Sixthly In extending improving and constructing (if the Board think fit) any works for the purpose of the undertaking;

Seventhly In providing working capital (if the Board think fit); and

Eighthly In providing a reserve fund (if the Board think fit) by setting aside such money as they think reasonable and (unless the same be paid into the consolidated loans fund) investing in statutory securities the sums so set aside and the sums which pursuant to the section of this Act of which the marginal note is "Interest on reserve funds" are to form part of that fund until the fund so formed amounts to a sum (in this Act referred to as "the prescribed maximum") equal to one tenth of the aggregate capital expended for the time being by the Board and by the constituent authorities upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Board from the undertaking or

A.D. 1937.

PART VI.
cont.

to meet any extraordinary claim or demand at any time arising against the Board in respect of the undertaking or for the payment of the cost of renewing improving or extending any part of the works forming part thereof and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens :

Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(b) Any balance remaining over in any year including any balance brought forward shall be carried forward to the following year and if such balance exceeds the sum of two thousand pounds the charges of the Board for the supply of water shall be reduced in such manner as the Board think fit to an extent equivalent to the amount of such excess.

(2) All capital moneys at any time received by the Board in respect of the undertaking shall be applied by them in the reduction of the capital moneys borrowed by them and such application shall be in addition to and not in substitution for any other mode of extinguishment except to such extent and upon such terms as may be approved by the Minister Provided that if and so long as there shall be no sum outstanding in respect of capital moneys borrowed by the Board as aforesaid capital moneys received by the Board in respect of the undertaking shall be paid to the reserve fund provided by the Board until that fund amounts to the sum of twenty thousand pounds and thereafter shall be applied in such other manner as may be approved by the Minister.

Interest on
reserve
funds.

119. Where sums are appropriated to a reserve fund the interest received in any year from the investment of the sums so appropriated shall form part of the revenue or fund out of which the sums were appropriated :

Provided that a sum equivalent to the amount so carried to the revenue or fund as aforesaid shall be

added to such reserve fund unless and until the reserve fund has reached the prescribed maximum. A.D. 1937.

PART VI.
—cont.

120. The accounts of the Board shall at all reasonable times be open to inspection and transcription without payment by any member or officer of any of the constituent authorities duly authorised in writing for that purpose. Accounts to be open to inspection.

121. As soon as practicable after the completion of every financial year the treasurer shall forward to the clerk of each constituent authority an abstract of the accounts of the Board for that year. Accounts to be furnished to constituent authorities.

122. The accounts of the Board and of their committees and officers shall be subject to audit by a district auditor. Audit of accounts.

PART VII.

MISCELLANEOUS.

123.—(1) The Board may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water. Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force within the area or areas defined in the byelaws being the whole or part of the parish or parishes any part of which is situate within a distance of two miles from any of the said waterworks which is used by the Board for the purpose of pumping collecting or impounding water.

(3) Any landowner who may be affected by any such byelaws shall be entitled to be furnished with a copy thereof and to oppose the confirmation thereof.

(4) A copy of any such byelaws shall be sent to the clerk of the county council within whose county the area to which the byelaws relate is situate and (where such area is within the limits shown on the "deposited map" as such map is defined by section 119 of the Thames Conservancy Act 1932) to the secretary

A.D. 1937. to the conservators of the river Thames and (where
—
PART VII. such area is within the Ouse area as defined in the
—cont. section of this Act of which the marginal note is “For
protection of River Great Ouse Catchment Board”) to the River Great Ouse Catchment Board one month at least before application is made for their confirmation and before confirming the byelaws the Minister shall have regard to any representations thereon which may be made within the said month by the said county council and the said conservators or the said catchment board (as the case may be).

(5) The Board shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws or who are required by such byelaws to construct any works or to do any act or thing which could not lawfully be required by the local sanitary authority of the district in which such lands are situate and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Acts 1889 to 1934 and for the purposes of this subsection the expression “legal rights” shall include a user of land in respect of which the local authority might have taken proceedings under the Public Health Acts or under their byelaws but have decided not to do so having regard to the character or situation of the land.

(6) Section 298 of the Public Health Act 1936 shall with any necessary modifications extend and apply in respect of proceedings for the recovery of any penalty imposed by any byelaw made under this section.

Agree-
ments as to
collection
of rates &c.

124.—(1) The Board and any of the constituent authorities may enter into and carry into effect agreements with respect to the collection by such authority of the rates and charges which the Board are authorised to levy and take for and in connection with the supply of water and any agreement under this section may with respect to the whole or any part of such rates and charges provide that the authority may levy and recover such rates and charges as though they were payable to the authority and not to the Board.

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xciv.]
1 GEO. 6.]

(2) A constituent authority authorised to levy and recover rates and charges in pursuance of subsection (1) of this section shall have the same powers as the Board for such purposes.

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PART VII.
—cont.

(3) The Board on the one hand and the constituent authorities or any of them on the other hand may also enter into and carry into effect agreements for or with respect to any of the other purposes or provisions of this Act.

125. If a justice be satisfied on complaint by any collector of water rates due to the Board that any person is quitting or about to quit any premises to which the Board supply water and has failed to pay on demand any water rate which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said collector to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons.

Recovery
of rates
from
persons
removing.

126.—(1) The Board shall be deemed to be a local authority within the meaning of the Local Government and other Officers' Superannuation Act 1922 (in this section referred to as "the Act").

Super-
annuation
of officers
and ser-
vants of
Board.
12 & 13
Geo. 5. c. 59.

(2) The county council may on such terms and conditions as they think fit and with the approval of the Minister admit any officers or servants of the Board to participate in the benefits prescribed by the Act in like manner as though they were officers and servants of the county council and subsection (3) of section 5 of the Act shall mutatis mutandis extend and apply accordingly.

127.—(1) The Board may if they think fit in cases not within the Workmen's Compensation Act 1925 and not entitled to benefits under the Local Government and other Officers' Superannuation Act 1922 grant a weekly or other periodical allowance (not exceeding one-half of his salary or wages) or in lieu thereof a gratuity of any sum (not exceeding two years' salary or wages) to any of their officers or servants who may

Power to
grant
allowances
or gratui-
ties in
certain
cases.
15 & 16
Geo. 5. c. 84.

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—
PART VII.
—cont.

be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or been paid if he had continued in his office or service.

Power for
Board to
apply for
further
powers &c.

128.—(1) The Board shall have power to promote or oppose any Bill in Parliament or any Provisional Order or Special or other statutory Order.

(2) The Board may pay the costs and expenses of and incidental to the promotion of or opposition to any such Bill in Parliament or the promotion of or opposition to any such Provisional Order or Special Order as taxed by the taxing officer of the House of Lords or of the House of Commons out of their revenues as part of their working expenses or out of moneys to be borrowed by the Board for the purpose Provided that—

(a) No expenses in relation to the promotion of any such Bill shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the Board by a majority of the whole number of the Board after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in a newspaper circulating in the districts of the constituent authorities such notice to be in addition to the ordinary notices required for summoning such meeting;

(b) No further expenses shall be incurred or paid as aforesaid after the deposit of the Bill unless the propriety of the promotion of the Bill shall be confirmed by such absolute majority at a further meeting of the Board to be held in pursuance of a similar notice not less than fourteen days after the deposit of the Bill in Parliament and unless in the case of the promotion of a Bill the propriety of such promotion shall have received the approval of the Minister.

[1 EDW. 8. & Bucks Water Act, 1937.
1 GEO. 6.]

[Ch. xcv.] A.D. 1937.

PART VII.

—cont.

129. Sections 2 and 3 of the Public Works Facilities Act 1930 and the First Schedule to that Act shall have effect in relation to the Board as if this Act had been in force immediately before the commencement of that Act.

As to application of Public Works Facilities Act 1930. 20 & 21 Geo. 5. c. 50.

130.—(1) Section 303 of the Public Health Act 1875 shall extend and apply to and the powers thereof may be exercised by the Board as if they were within the meaning of that section the local authority for a district consisting of the district of the Board and on the application of the Board the Minister may make such orders as he is by that section empowered to make on the application of a local authority.

Extension of section 303 of Public Health Act 1875 and certain sections of Act of 1933 to Board.

(2) The Minister may by means of a Provisional Order made by him and confirmed by Parliament authorise the Board to acquire land compulsorily for any purposes of the undertaking and for that purpose section 160 of the Act of 1933 shall extend and apply as if the Board were a local authority within the meaning of that section.

(3) Section 161 of the Act of 1933 shall extend and apply as if the Board were a local authority within the meaning of that section.

(4) The provisions of this section shall be in addition to and not in derogation of any other powers conferred by this Act.

(5) Nothing in this section shall authorise the compulsory acquisition by means of a compulsory purchase order of land which has been acquired by statutory undertakers for the purpose of their undertaking.

131. The Board may pay out of their revenues as expenses incurred by them under this Act—

Subscriptions to associations and payment of certain expenses.

- (a) reasonable subscriptions (whether annually or otherwise) to the funds of any association of water boards or water undertakers formed for the purpose of consultation as to their common interests and the discussion of matters relating to water supply or of the officers of any such undertakers or to the funds of any scientific or other society or body (not carrying on business for profit) which or the members

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—cont.

of which are engaged in investigations or the keeping of records of use or value to water undertakers and any reasonable expenses of the attendance of any members or officers of the Board at conferences or meetings of such association society or body and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings; and

- (b) reasonable expenses in connection with the public opening of works of the Board or works from which the Board are entitled to a supply of water.

Application
of certain
sections of
Public
Health Act
1875 and
Act of 1933
to Board.

132. Section 265 of the Public Health Act 1875 and sections 123 266 276 277 and 278 of the Act of 1933 shall extend and apply to the Board and the members officers and clerk of the Board as if the Board were a local authority within the meaning of such sections respectively.

Evidence
of appoint-
ments
authority
&c.

133. Where in any legal proceedings taken by or on behalf of or against the Board or any officer servant solicitor or agent of the Board or any committee of the Board under any Act or Order from time to time relating to the Board it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Board or of any committee of the Board or to prove any resolution or order of the Board or any resolution order or report of any committee of the Board a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Board or of the clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authenti-
cation and
service of
notices &c.

134. The following sections of the Public Health Act 1936 shall so far as applicable and with any necessary modifications have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.):

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xcv.]
1 GEO. 6.]

Provided that for the purposes of such application the Board shall be deemed to be a council within the meaning of the said section 284.

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—
PART VII.

—cont.

135. Where under any Act or Order from time to time relating to the Board the Board give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to
breach of
conditions
of consent
of Board.

136. The provisions of sections 250 to 252 of the Act of 1933 shall with all necessary modifications apply to all byelaws made by the Board under the powers of this Act and for that purpose the Board shall be deemed to be a local authority within the meaning of the Act of 1933 and the confirming authority in relation to any such byelaws shall be the Minister.

Confirma-
tion of
byelaws.

137. Where under this Act any question dispute or matter is to be referred to or settled by arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the question dispute or matter shall be referred to an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

Application
of Arbitra-
tion Acts.

138. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act as if such powers were conferred by and such consents were required to be given under the Act of 1933 and section 290 of that Act shall apply accordingly.

Inquiries by
Minister.

139. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Judges not
disqualified.

A.D. 1937.

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—cont.

Recovery of
demands.

140. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in an action founded on contract or tort.

Cesser of
powers of
constituent
authorities to
supply water.

141. Subject to the provisions of this Act the powers of the constituent authorities with reference to the supply by them of water within the limits of supply shall cease and determine as from the appointed day.

Recovery of
penalties
&c.

142. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner :

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Crown
rights.

143. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing in this Act—

(1) except with and subject to the terms of the consent in writing of the Commissioners of Crown Lands on behalf of His Majesty first had and obtained for that purpose authorises the Board to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of those Commissioners; or

(2) except with and subject to the terms of the consent in writing of the Secretary of State for Air (hereinafter in this section called “the Secretary of State”)—

(a) authorises the Board to take enter upon use or interfere with any land or water (notwithstanding that any such land or water may be described in the deposited books

[1 EDW. 8. & Bucks Water Act, 1937. [Ch. xciv.]
1 GEO. 6.]

of reference or delineated on the deposited plans and sections) or any right in respect thereof for the time being vested in or in the occupation of or exercised or exerciseable by the Secretary of State or vested in or in the occupation of or exercised or exerciseable by any other person body or corporation acting for or on behalf of the Secretary of State; or

(b) takes away lessens prejudices or alters any right privilege or power vested in or exercised or exerciseable by the Secretary of State.

Any consent of the Commissioners of Crown Lands or of the Secretary of State for the purposes of this section may be given by the Commissioners of Crown Lands or by the Secretary of State respectively as the case may be upon such conditions as they or he may respectively see fit to impose.

144. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall in the first instance be paid by the county council but shall be repaid to them by the Board out of the moneys to be borrowed by them under the powers of this Act.

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PART VII.

—cont.

Costs of
Act.

A.D. 1937.

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

EXISTING UNDERTAKINGS.

(a) *Existing undertakings of Aylesbury Council—*

(1) Parish of Grendon Underwood :

Two wells situated in enclosure numbered 262 on
the Ordnance map (edition 1899) sheet XXII.10.
Pipes standpipes and other works.

(2) Parish of Lower Winchendon :

Pipes standpipes and other works.

(3) Parish of Ludgershall :

Pipes and standpipes conveying water from source
on private estate at Muswell Hill Brill.

(4) Parish of Quainton :

Spring at Simber Hill situated in enclosure numbered
244 on the Ordnance map (edition 1899) sheet
XXIII.9.

Land being enclosure numbered 247 on the Ord-
nance map (edition 1899) sheet XXII.16 with
reservoir thereon.

Main from the above-mentioned spring to the
above-mentioned reservoir.

Distribution mains pipes and other works roadside
tanks and pipes connecting such tanks with each
other.

(5) Parish of Stoke Mandeville :

Mains pipes and other works.

(b) *Existing undertakings of Buckingham Council—*

(1) Parish of Charndon :

Well pumping station and reservoir situated in
enclosure numbered 82 on the Ordnance map
(edition 1899) sheet XXII.1.

Main connecting the said well and pumping station with the said reservoir. A.D. 1937.

Mains pipes and other works.

—
1ST SCH.
—cont.

(2) Parish of Edgcott :

Spring and collecting tank situated in enclosure numbered 16 on the Ordnance map (edition 1899) sheet XXII.6.

Mains pipes and standpipes.

(3) Parish of Padbury :

Wells situated in highway in enclosures numbered 141 and 238 on the Ordnance map (edition 1923) sheets XVIII.3 and 4.

Mains pipes and standpipes.

(4) Parish of Steeple Claydon :

Three wells situated in enclosure numbered 162 on the Ordnance map (edition 1923) sheet XVIII.15 and land belonging to the Buckingham Council on which one of such wells is situate.

Mains pipes and standpipes.

(5) Parish of Twyford :

Three wells and reservoir situated in enclosure numbered 189 on the Ordnance map (edition 1923) sheet XVIII.9.

Mains pipes standpipes and other works.

(6) Parish of Water Stratford :

Spring situated in enclosure numbered 94 on the Ordnance map (edition 1923) sheet XIII.9.

Reservoir situated in enclosure numbered 105 on the said Ordnance map and sheet.

Main leading from the said spring to the said reservoir.

Mains pipes standpipes and other works.

(7) Parish of Westbury :

Land being part of enclosure numbered 96 on the Ordnance map (edition 1922) sheet XII.7 with spring and pumping station situate thereon.

Land being enclosure numbered 150 on the said Ordnance map and reservoir thereon.

Rising main from the said pumping station to the said reservoir.

Mains pipes and other works.

A.D. 1937. (c) *Existing undertakings of Wing Council—*

1ST SCH.
—cont.

(1) Parish of Great Brickhill :

Mains pipes and other works.

(2) Parish of Ivinghoe :

Land being part of enclosure numbered 160 on the Ordnance map (edition 1925) sheet XXX.5 and three wells and pumping station thereon.

Land being part of enclosure numbered 125 on the said Ordnance map and sheet and reservoir thereon.

Main connecting the said pumping station with the said reservoir.

Mains pipes and other works.

(3) Parish of Wing :

Land being enclosure numbered 75 on the Ordnance map (edition 1925) sheet XXIV.3 and well and pumping station thereon.

Land being enclosure numbered 320c on the said Ordnance map and sheet and sand filters and reservoir thereon.

Rising main connecting the said pumping station with the said filters and reservoir.

Mains pipes and other works.

(d) *Existing undertakings of Winslow Council—*

(1) Parish of Little Horwood :

Springs and storage tank situated in enclosure numbered 277 on the Ordnance map (edition 1925) sheet XIX.2.

Mains pipes and standpipes and other works.

(2) Parish of North Marston :

Spring (shown as the Schorne Spring) and tank situate in enclosure numbered 132 on the Ordnance map (edition 1899) sheet XXIII.6.

Mains pipes standpipes and other works.

(3) Parish of Shenley Brook End :

Spring in highway in enclosure numbered 133 on the Ordnance map (edition 1925) sheet XIV.8.

Land and tank in enclosure numbered 134 on the said Ordnance map and sheet.

Mains pipes and other works.

NOTE.—The Ordnance map referred to in this schedule is the 1/2500 Ordnance map of the county of Buckingham.

THE SECOND SCHEDULE.

A.D. 1937.

PROPERTIES OF WHICH PART ONLY MAY BE TAKEN.

Area.	Numbers on deposited plans.
Parish of Wendover	10 11 24 26 28 29 30 32 to 37 (inclusive) 101 to 104 (inclusive) 107 118.
Parish of Stoke Mandeville	9 12 15.
Parish of Quainton	5 7.
Parish of Stoke Hammond	11 12.

THE THIRD SCHEDULE.

1.	2.	3.	4.
Rural district.	Parish.	Temporary maximum rate for domestic purposes.	Period during which temporary maximum rate for domestic purposes and temporary maximum charge for metered supplies is to be in force.
Buckingham	Twyford	Seven and a half per centum.	Fifteen years.
„	Westbury	Seven and a half per centum.	Fifteen years.
Wing	Ivinghoe	Ten per centum	Fifteen years.

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